

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS — FORT WORTH DIVISION
Copeland v. Weinstein Management Co., Inc., et al.

EXHIBIT

14

**Dallas Mold Consultants Report and MAC Protocol,
September 8, 2025: Chaetomium contamination**

Legal Element Supported:

Defendants' own retained evidence; concealed from three state-court hearings

Verified Complaint Reference:

¶¶ 27, 36, 39, 41, 45

[SOURCE DOCUMENT TO BE SUPPLIED BY PLAINTIFF BEFORE FILING]

NO. 141-370402-25

WEINSTEIN MANAGEMENT CO.,
INC. AND WMC DALLAS X, LLC,
Plaintiffs and Counter-Defendants,

v.

KATHRYN COPELAND,
Defendant and Counter-Plaintiff.

§
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§
§
§
§
§

IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141ST JUDICIAL DISTRICT

Business Records Affidavit – Dayna Boor of Dallas Mold Consultants

STATE OF TEXAS §
COUNTY OF Dallas §

Before me, the undersigned authority, personally appeared **Dayna Boor**, who, being by me duly sworn, deposed as follows:

My name is **Dayna Boor**. I am of sound mind, capable of making this affidavit, and personally acquainted with the facts herein stated.

I am the **custodian of records** for **Dallas Mold Consultants**, a business engaged in mold assessment, testing coordination, reporting, and remediation protocol preparation in the State of Texas.

Attached hereto are 51 **pages of records** from **Dallas Mold Consultants**, consisting of mold inspection reports, remediation protocols, laboratory reports, chains of custody, and related documentation concerning the property located at **220 E. Broadway Avenue, Unit 2145, Fort Worth, Texas 76104**, prepared in connection with assessments performed in **September and October 2025**.

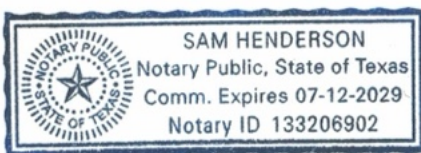
These 51 **pages of records** are kept in the **regular course of business** of Dallas Mold Consultants, and it was the regular course of business of Dallas Mold Consultants for an employee or representative with knowledge of the acts, events, conditions, opinions, or diagnoses recorded to make such records, or to transmit information thereof to be included in such records, **at or near the time** the events described occurred or **reasonably soon thereafter**.

The records attached hereto are the **original records or exact duplicates of the originals** maintained by Dallas Mold Consultants in the ordinary course of business.

Signed on 12/22/2025.

Dayna Boor
Affiant

SWORN TO AND SUBSCRIBED before me on 12/22/2025.



Sam Henderson
NOTARY PUBLIC, State of Texas

Printed Name: Sam Henderson

My Commission Expires: 07-12-2029

Subject: Re: Follow-Up on September 8 Mold Assessment Report
Date: Thursday, October 23, 2025 at 12:05:13 PM Central Daylight Time
From: Dayna Boor
To: Katie Copeland
Attachments: Weinstein-090425_Mold_Remediation_Protocol.pdf, Weinstein-090425_Reinspection_Report.pdf, Weinstein-090425_Air_Samples_Full_Lab_Report.pdf, Weinstein-090425_Tape_Lift_Full_Lab_Report.pdf, Weinstein-090425_Entry_Surface_Swab_Sample_Full_Lab_Report.pdf

Katie,

Please see attached reports. The remediation protocol was sent on 9/8. I was not initially made aware of the area by the front door but did go back and do an inspection of that area on 10/17. My swab sample collected by the front door on 10/17 did not find any *Stachybotrys* or anything unusual. I've attached my re-inspection report of that area. I did suggest that the baseboards and drywall in that area could be removed to further inspect.

For the contents - the remediation protocol calls for the contents to be packed-out of the apartment and cleaned according to EPA guidelines. The contents needed to be moved out so that the remediation company had room to perform a full environmental cleaning on the entire apartment.

I hope this information is helpful to you.

Dayna

On Thu, Oct 23, 2025 at 12:23 AM Katie Copeland <quinnandpoppy@gmail.com> wrote:
Ms. Boor,

I hope you're doing well. I received what appears to be your September 8, 2025 Mold Assessment and Remediation Protocol for Weinstein Properties – Unit 2145, Bowery at Southside.

Could you please confirm that this is your report? If so, would you prefer to provide a cleaner version with all components, including lab results, so I can be sure I'm reading it accurately?

Do your records indicate when and to whom the report was delivered? I assume it was shortly after completion, but I want to make sure I understand the timing correctly.

Your report notes that the client requested the assessment following a water loss from the HVAC condensation drain line affecting the mechanical closet and guest bedroom. Were you provided with or made aware of any prior mold assessments or lab findings from BioTex Inspections in June 2025, particularly results showing *Stachybotrys* or other toxic mold near the front door?

Finally, does your remediation protocol specify that licensed mold remediation is

required and that contents should not be removed until clearance testing confirms safety? The area of contents cleaning is a bit foreign to me so I want to get an understanding of how my belongings are meant to be handled.

I appreciate your time and professionalism. I'm not asking for confidential opinions—just confirming a few factual details for accuracy.

Sincerely,
Katie Copeland
817-789-8498

From: Katie Copeland <quinnandpoppy@gmail.com>
Date: Thursday, October 2, 2025 at 9:07 PM
To: Dayna Boor <dayna@dallasmoldconsultants.com>
Subject: Re: Mold Assessment and Protocol

Yes, but I will try again.

Sincerely,
Katie Copeland
817-789-8498

From: Dayna Boor <dayna@dallasmoldconsultants.com>
Date: Thursday, October 2, 2025 at 6:03 PM
To: Katie Copeland <quinnandpoppy@gmail.com>
Subject: RE: Mold Assessment and Protocol

Katie,

I can only release reports to the client who hired me. In this case, the property management company. Have you asked them for it?

Dayna

Sent from my T-Mobile 5G Device

----- Original message -----

From: Katie Copeland <quinnandpoppy@gmail.com>
Date: 10/2/25 12:58 PM (GMT-06:00)
To: office@dallasmoldconsultants.com
Subject: Mold Assessment and Protocol

Hello,

I am the tenant at at 220 E. Broadway #2145, Fort Worth, TX 76104.

May I please have a copy of the mold assessment report, lab results, and protocol completed in early September? I am especially curious about the findings of the lab tests on my belongings.

Sincerely,
Katie Copeland
817-789-8498

--

Dayna Boor
Dallas Mold Consultants
www.dallasmoldconsultants.com
972-945-MOLD office
214-606-1330 cell

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24

Filed 05/13/26

Page 6 of 105



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

Air Exam Chain of Custody
Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Company name		Dallas Mold Consultants				moldlab					
Address		8080 N. Central Expy Ste 1700		City	Dallas	State	TX	ZIP	75206	FM-17 External 10 Line Chain of Custody Form	
Project name		Weinstein- 090425				Submitted By:		Dayna Boor			
Project address		220 E Broadway Ave #2145, Ft. Worth TX				ZIP	76104		Cell phone		214-606-1330
Project#(optional)		Turnaround Time				Email address:		dayna@dallasmoldconsultants.com			
Sample Date		09/04/2025		3HR	6HR	24HR	48HR	3DAY	5DAY	CC:	
				☐	☐	☒	☐	☐	☐	CC:	
Test Codes		MOLD				ASBESTOS					
		Air Samples				Surface Samples					
		1. Spore Trap: mold only 2. Spore Trap: mold & other particle				3. Tape/Swab/Bulk: mold only ratings 4. Tape/Swab/Bulk: mold & other particle ratings				7. PLM 8. PLM Point Count	
Sample # or ID	Sample Name, Location or Description	Temp	R.H.%	Test code	Time on (applicable to air samples only)	Time off (applicable to air samples only)	Total Vol. (applicable to air samples only)	Sample Type (Bulk, Tape, Swab, Allergens, etc.)	No. of Containers		
1. 090425-01	Guest Bedroom Tape Lift	76	63	3				tape	1		
2. 090425-02	HVAC Closet Drivall Tape Lift	76	63	3				tape	1		
3. 00010444	HVAC Closet Hallway	76	63	1	11:39am	11:44am	75L	an	1		
4. 00010785	Guest Bedroom	76	63	1	11:45am	11:50am	75L	an	1		
5. 00010449	Living Room	76	63	1	11:52am	11:57am	75L	an	1		
6. 00010704	Master Bedroom	76	63	1	11:58am	12:03pm	75L	an	1		
7. 00010650	Outside Baseline	92	43	1	12:05pm	12:10pm	75L	an	1		
8.											
9.											
10.											
Payment options		☐ Invoice to account ☒ Process credit card on file ☐ enclosed check#		Released by (your signature) By signing this document, you certify that these samples were not tampered with while under your care and accept the Moldlab, Ltd Terms of Service, available at moldlab.com/terms. Time: 1:15pm Date: 09/04/2025		Received Date Stamp: RECEIVED SEP 04 2025 BY: [Signature]					
Field Notes:											
Special Instructions:											
Tracking #:											
Lab Job #		25-111919 25-111920									
Rev. 7, Issue Date: 3/24/2022		2501 Mayes Road, Ste. # 110 Carrollton, TX 75006 info@moldlab.com 1-800-416-6653 Page ___ of ___									

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 9/4/2025 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

Page 1 | 1

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

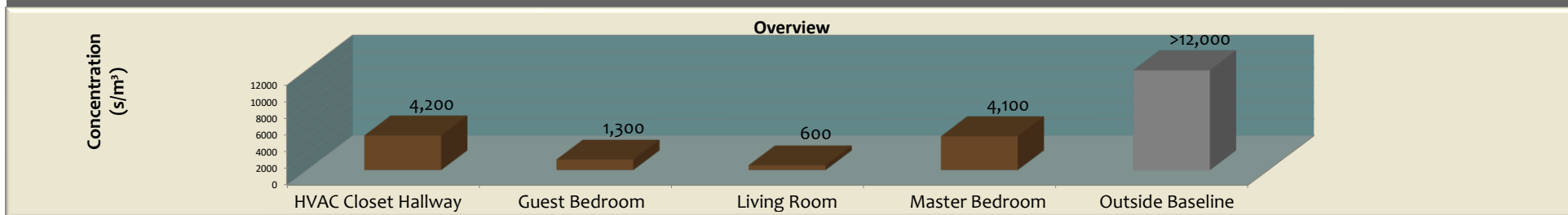
Approved by:

Kristina Rucker, Lab Director



moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

This report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ



Location to Reference Comparison

Identification	HVAC Closet Hallway		Guest Bedroom		Living Room		Master Bedroom		Compares	Outside Baseline	
Sample Number	00010444		00010785		00010449		00010704			00010650	
Volume (L)	75		75		75		75			75	
	Raw	s/m³	Raw	s/m³	Raw	s/m³	Raw	s/m³		Raw	s/m³
Alternaria	-	-	-	-	1	43	1	43	☞	7	300
Ascospores, non-specified	1	43	1	43	-	-	-	-	☞	7	300
Aspergillus/Penicillium-like	71	3,000	12	510	2	85	5	210	☞	30	1,300
Basidiospores, non-specified	-	-	-	-	1	43	-	-	☞	12	510
Bipolaris/Dreschslera/Helminthosporium/Exserohilum	-	-	1	43	-	-	-	-	☞	-	-
Cercospora	-	-	-	-	-	-	1	43	☞	4	170
Chaetomium	15	640	7	300	-	-	5	210	☞	-	-
Cladosporium	3	130	7	300	7	300	67	2,900	☞	>100	>8,500
Curvularia	-	-	-	-	-	-	-	-	☞	2	85
Fusarium	-	-	-	-	-	-	-	-	☞	4	170
Hyphal Fragments	7	300	2	85	1	43	16	680	☞	6	260
Myxomycetes/Periconia/Smut/Rust	-	-	-	-	1	43	-	-	☞	2	85
Nigrospora	1	43	-	-	1	43	-	-	☞	4	170
Pithomyces	-	-	-	-	-	-	-	-	☞	2	85
Yeast-like fungi	-	-	-	-	-	-	-	-	☞	2	85
Total Fungal Structures	98	4,200	30	1,300	14	600	95	4,100		>180	>12,000
Non-Microbial Debris Field Rating	Light		Light		Light		Light			Light	

Submitted By: Dayna Boor | Submittal Date: 9/4/2025 1:13:00 PM | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Analyst: Steven Reese

If a structure is not listed, or listed with a (-), it was not observed in the sample(s) submitted. Debris rating estimates the total non-fungal particle load on the sample. Ratings of None Detected, Trace (>0 to 5%), Light (>5% to 25%), Moderate (>25% to 75%), Heavy (>75% to 90%), and Occluded (>90%) are used. A rating of Light or higher may have a higher number of structures present than indicated. The higher the rating, the greater the negative bias. A rating of Occluded makes quantitative results impossible; instead, any structures detected will be marked as Detected.

Concentrations are rounded to two significant figures. The 'total' field may not add up to sum of individual types due to this rounding. The maximum raw count is 100 due to stopping rules. The calculated concentration for a 100 raw count sample will vary depending on the traverse in which the stopping rule was applied. Sample volumes are provided by the customer and impact the validity of structure concentrations. Yellow highlighted concentrations are higher than the reference. Samples received and analyzed by Moldlab, Ltd.

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24

Filed 05/13/26

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Report

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

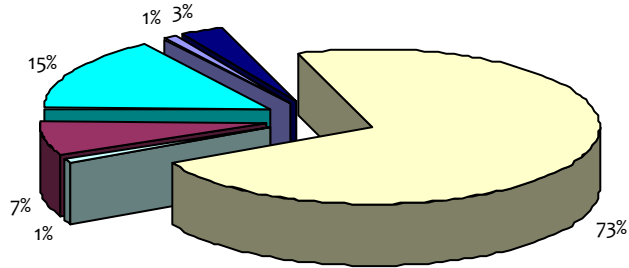
Sample No: 00010444	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:39
Location: HVAC Closet Hallway	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:44

Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Ascospores, non-specified	1	43	43	Aspergillus/Penicillium-like	71	3,000	43
Chaetomium	15	640	43	Cladosporium	3	130	43
Nigrospora	1	43	43				
Hyphal Fragments	7	300	43				

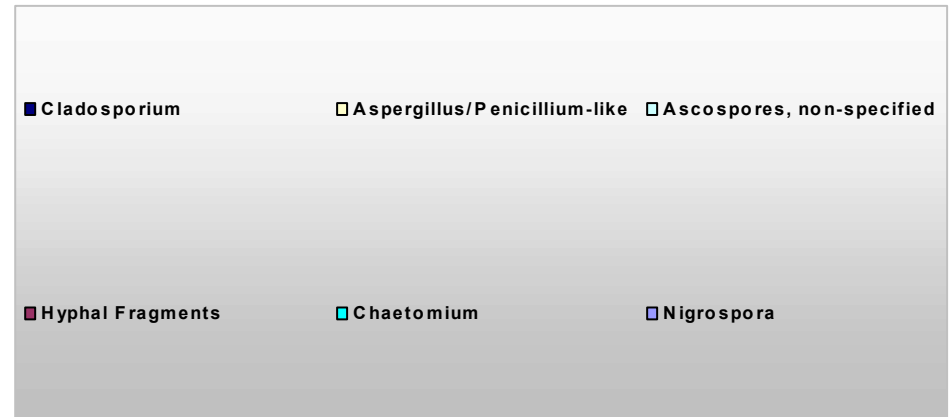
Total Fungal Structures/m³*: 4,200



Non-Microbial Debris Field Rating



Relative Mold Type Concentration



Tech Notes:

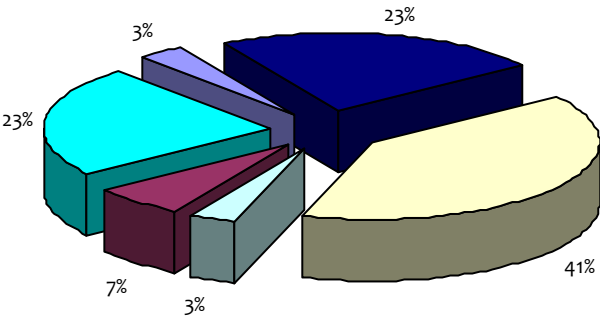
Sample No: 00010785	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:45
Location: Guest Bedroom	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:50

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Ascospores, non-specified	1	43	43	Aspergillus/Penicillium-like	12	510	43
Bipolaris/Dreschlera/Helminthosporium/	1	43	43	Chaetomium	7	300	43
Cladosporium	7	300	43				
Hyphal Fragments	2	85	43				

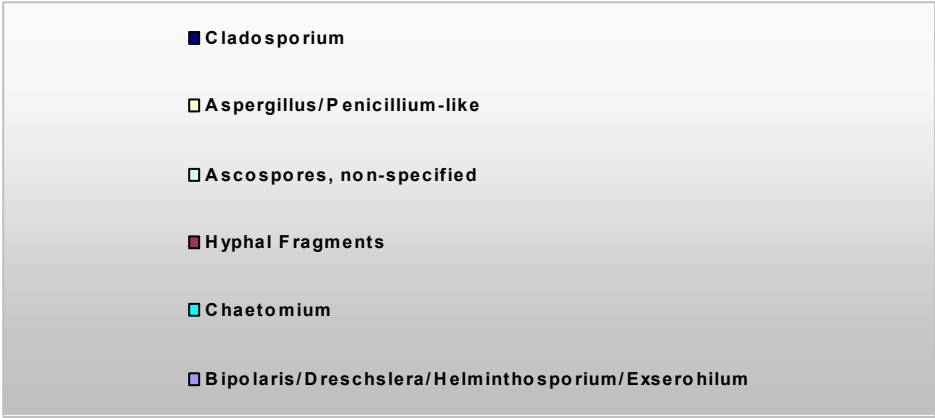
Total Fungal Structures/m³*: 1,300



Non-Microbial Debris Field Rating



Relative Mold Type Concentration

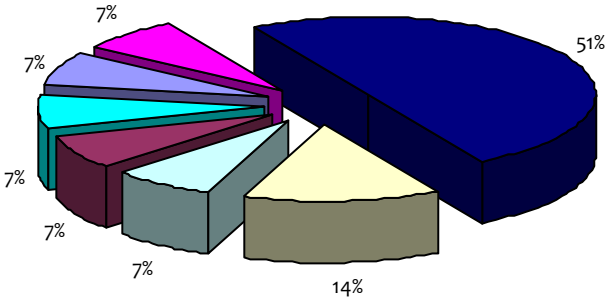


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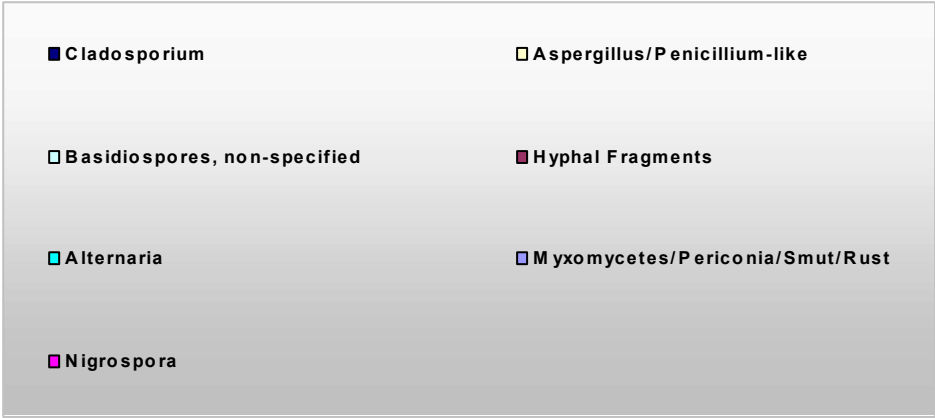
Sample No: 00010449	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:52
Location: Living Room	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:57

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Alternaria	1	43	43	Aspergillus/Penicillium-like	2	85	43
Basidiospores, non-specified	1	43	43	Cladosporium	7	300	43
Myxomycetes/Periconia/Smut/Rust	1	43	43	Nigrospora	1	43	43
Hyphal Fragments	1	43	43				

Total Fungal Structures/m³*: 600



Relative Mold Type Concentration

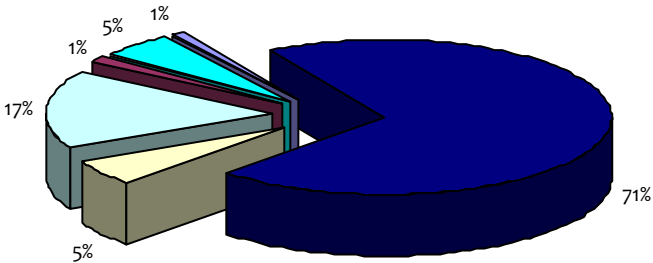


Tech Notes:

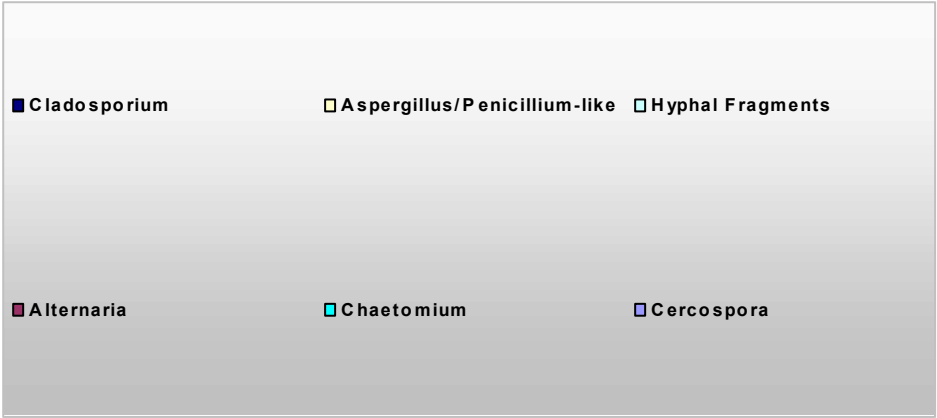
Sample No: 00010704	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:58
Location: Master Bedroom	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 12:03

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Alternaria	1	43	43	Aspergillus/Penicillium-like	5	210	43
Cercospora	1	43	43	Chaetomium	5	210	43
Cladosporium	67	2,900	43				
Hyphal Fragments	16	680	43				

Total Fungal Structures/m³*: 4,100



Relative Mold Type Concentration



Tech Notes:

Sample No: 00010650

Sample Type: Allergenco D

Analysis Date: 9/5/2025

Sample Start Time: 12:05

Location: Outside Baseline

Volume (L): 75

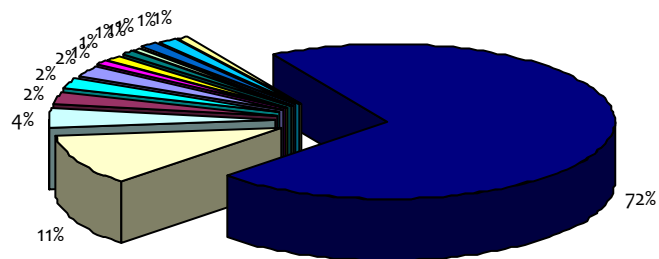
% Sample Analyzed**: 31.25%

Sample Stop Time: 12:10

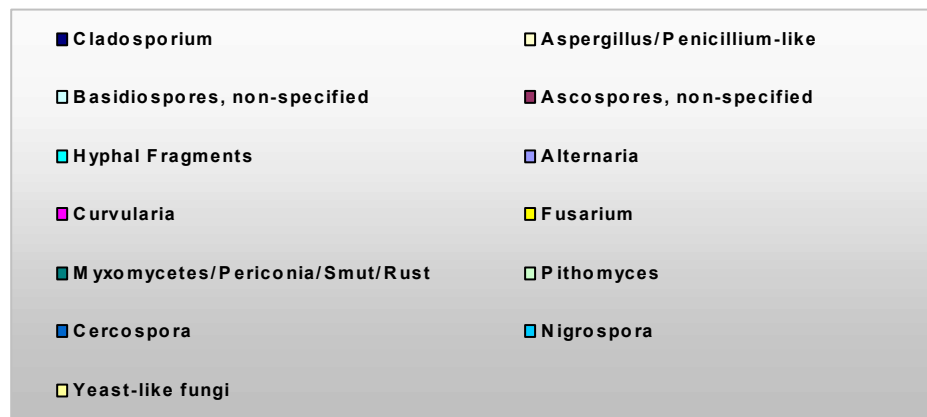
Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Alternaria	7	300	43	Ascospores, non-specified	7	300	43
Aspergillus/Penicillium-like	30	1,300	43	Basidiospores, non-specified	12	510	43
Cercospora	4	170	43	Cladosporium	>100	>8,500	85
Curvularia	2	85	43	Fusarium	4	170	43
Myxomycetes/Periconia/Smut/Rust	2	85	43	Nigrospora	4	170	43
Pithomyces	2	85	43	Yeast-like fungi	2	85	43
Hyphal Fragments	6	260	43				

Total Fungal Structures/m³*: >12,000

Non-Microbial Debris Field Rating



Relative Mold Type Concentration



Tech Notes:

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Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

If a structure is not listed, it was not observed in the sample(s) submitted. Debris rating estimates the total non-fungal particle load on the sample. Ratings of Non Detected, Trace (>0 to 5%), Light (>5% to 25%), Moderate (>25% to 75%), Heavy (>75% to 90%), and Occluded (>90%) are used. A rating of Light or higher may have a higher number of structures present than indicated. The higher the rating, the greater the negative bias. A rating of Occluded makes quantitative results impossible: any structures detected will be marked as Detected. Concentrations are rounded to two significant figures. The 'total' field may not add up to the sum of individual types due to this rounding. The maximum raw count is 100 due to stopping rules. The calculated concentration for a 100 raw count sample will vary depending on the traverse in which the stopping rule was applied. Sample volumes are provided by the customer and impact the validity of structure concentrations.

* s/m³ is structures/m³. A structure is the analyte of interest chosen by the client. **Refers to percent of sample in which structures are enumerated. If you have any questions regarding count rules, please call the lab. Samples received and analyzed by Moldlab, Ltd.

LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782.

2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

flashback

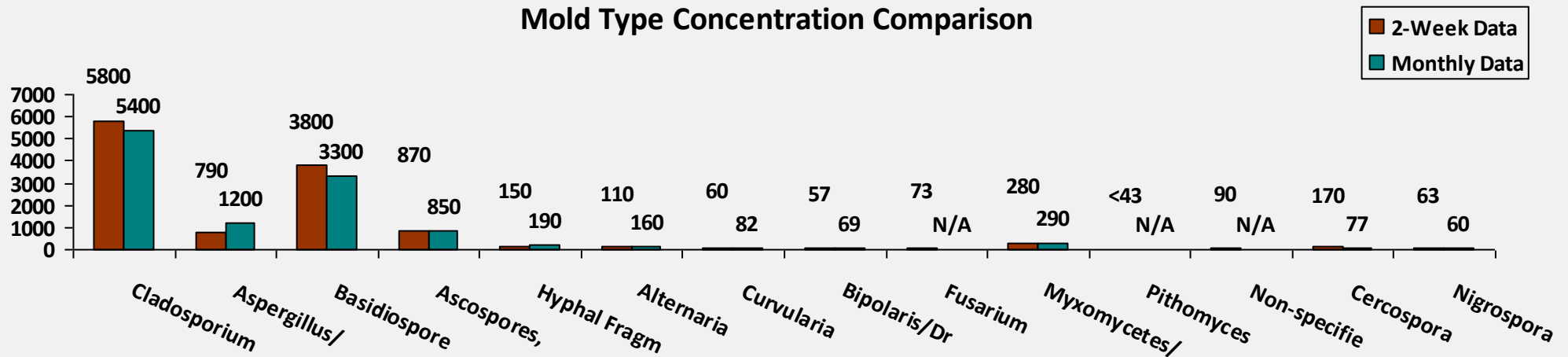
2-Week Average Outdoor Data

Identification	Concentration (s/m ³)
Alternaria	110
Ascospores, non-specified	870
Aspergillus/Penicillium-like	790
Basidiospores, non-specified	3,800
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	57
Cercospora	170
Cladosporium	5,800
Curvularia	60
Fusarium	73
Hyphal Fragments	150
Myxomycetes/Periconia/Smut/Rust	280
Nigrospora	63
Non-specified spore	90
Pithomyces	<43

September Historical Average Outdoor Data

Identification	Concentration (s/m ³)
Alternaria	160
Ascospores, non-specified	850
Aspergillus/Penicillium-like	1,200
Basidiospores, non-specified	3,300
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	69
Cercospora	77
Cladosporium	5,400
Curvularia	82
Hyphal Fragments	190
Myxomycetes/Periconia/Smut/Rust	290
Nigrospora	60

Mold Type Concentration Comparison



Report Date: 9/5/2025 | Sample Date: 9/4/2025

2-Week average Outdoor Data is from 8/21/2025 - 9/4/2025. September Historical Average Outdoor Data is the mean Calculated Concentration for outdoor samples from selected clients from selected zip codes considered by MoldLab to be part of the DFW area. Contact the lab for a complete list of zip codes. Data may not be applicable to areas outside of these zip codes. Outdoor data begins in 2015 and ends in 2024, and is exclusive to the month listed. This report is not intended as a replacement for an outdoor reference sample. Mold types that were not listed in the 2-Week Average Data were not detected, or were detected at a level <22 spores/m³. Mold types that were not listed in the Historical Average Outdoor Data were not detected, or were detected at a level <43 spores/m³. No correction for statistical significance or uncertainty of measurement has been applied. Mold Types listed as "N/A" in the Mold Type Concentration Comparison chart were not detected at a statistically significant level. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein.LAB0137 by the Texas Dept. of Licensing and Regulation.

moldlab

2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

Air Exam Glossary

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus. The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

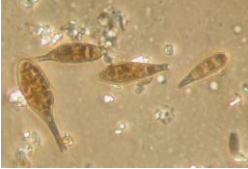
Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition	Images
Alternaria (all-tur-nair'ee-uh) Classification: Common Allergen / Contaminant / Opportunistic Pathogen (rarely) Possible Health Effect: It is an important allergen and common agent of hay fever, asthma, and other allergy related symptoms, including sinusitis. Macroscopic Morphology: The mold can appear gray / white at first than become greenish / black or brown with a lighter border over time. Environment: Soil, Plants, Commonly found indoors on food and textiles.	 
Ascospores, non-specified (ass-co'-spores) Classification: These are a very large category of spores. Possible Health Effect: Because so few of the Ascomycetes will grow in the laboratory setting, very little is known about their health effects on humans. Macroscopic Morphology: Most will appear as specks or spots or bumps on leaves and wood. Environment: Leaves, Wood. Also, most are plant saprophytes playing the role of "recyclers". Spores are produced in sac-like structures called asci.	 

Tech Notes:

Definition

Images

Aspergillus/Penicillium-like (as-per-jill-us) / (pen-uh-sill'ee-um)

Classification: Allergen / Contaminant / Opportunistic Pathogen

Possible Health Effect: Aspergillus is common on tape lift samples and air samples, but its spores are indistinguishable from Penicillium spores in most cases. There are a few exceptions but the species ID must be made from culture, and is still a difficult job. Health effects vary by species, but many are listed as allergens. Some species can produce toxins that may have significant health effects in humans. Aspergillus is listed as one of the most infectious types of mold, but infections are not common in normal healthy immune systems. However, if you are immune suppressed or compromised this should be discussed with your physician.

Macroscopic Morphology: Aspergillus can appear in a wide range of colors from white to purple, yellow to green, see images next to text.

Environment: Commonly found in the environment around the world.



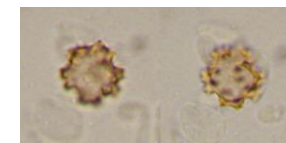
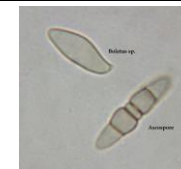
Basidiospores, non-specified (bah-sid-ee-oh'-spores)

Classification: Allergen / Contaminant. Another large general class of spores formed on a structure called a basidium, mushrooms belong to this group.

Possible Health Effect: Allergen and possible poisoning if certain species are ingested.

Macroscopic Morphology: Mushrooms, puffballs and bracket fungi.

Environment: This category of spores is found in the outdoor air make up. This is a common cause of Wood Rot. High concentrations in an indoor air sample might be indicative of water damage or too high humidity. Often abundant at night or pre-dawn hours when there is high humidity.



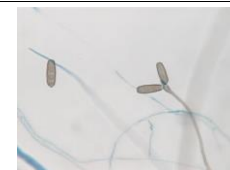
Bipolaris/Dreschlera/Helminthosporium/Exserohilum types (bye-pole-air-us)(dresh-lair'-uh) /

Classification: Contaminant / Opportunistic pathogen

Possible Health Effect: Allergenic and the most common agent for allergic fungal sinusitis. Various but uncommon infections of the eye, nose, lungs and skin in debilitated hosts.

Macroscopic Morphology: The mold will appear brownish / black with a black matted middle and a raised lighter color periphery.

Environment: The fungus is a saprophyte and can be found in soil.



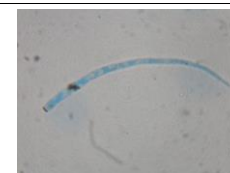
Cercospora group (sir-ko-spore-ra)

Classification: Contaminant / Plant Pathogen

Possible Health Effect: None found at this time

Macroscopic Morphology: reddish-brown to gray-black/wooly

Environment: Plants-cause of leaf spot on sugar beets



Definition

Images

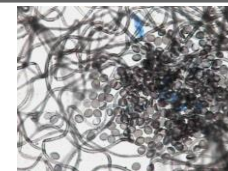
Chaetomium (kay- toe-me-um)

Classification: Contaminant / some report allergen

Possible Health Effect: Rarely involved in systemic and cutaneous disease and sometimes reported to be allergenic. Some species can produce toxins, and there is some research interest on whether these toxins can cause cancer.

Macroscopic Morphology: The surface of the mold is cottony, spreading and becomes tan or gray with age. With close examination the surface sometimes will appear to have little black specks like pepper.

Environment: Chaetomium is one of the few Ascomycetes that will grow and produce spores indoors. It prefers to grow on cellulose for example paper and wood. Primary IAQ importance is that it will grow in the same conditions as Stachybotrys (wet cellulose) and sheetrock paper. Colonies of Chaetomium and Stachybotrys will be growing on top of one another. Also, found in soil and hay.



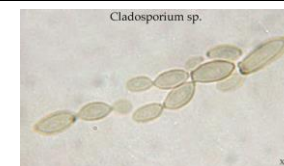
Cladosporium (clad-oh-spore-ee-um)

Classification: Common Allergen/ Contaminant

Possible Health Effect: Rarely pathogenic, it is a common agent of hay fever and asthma and other allergy related symptoms.

Macroscopic Morphology: Surface of the mold is greenish brown or can appear black in color with age and have heap or folded appearance.

Environment: Cladosporium can be found in most air samples most of the time. It is very common. Cladosporium is one of the types of mold found growing on HVAC vent covers and grills. It can grow on leaves, textiles, wood, paper, and decaying vegetation.



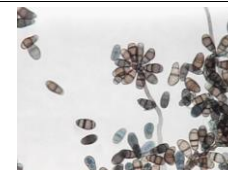
Curvularia (curve-you-lair'-ee-uh)

Classification: Contaminant / Opportunistic Pathogen

Possible Health Effect: Some sources site it as an allergen. Rare infections of the cornea, nail and sinuses primarily in Immunocompromised individuals.

Macroscopic Morphology: The mold appears as olive green to brown or black with a pink wooly surface.

Environment: The mold is common in the air and in the soil as a saprophyte and in textiles and decaying vegetation.



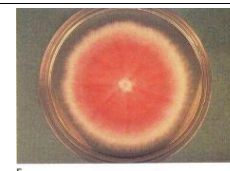
Fusarium (few-sarh-ee-um)

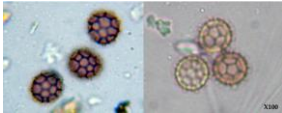
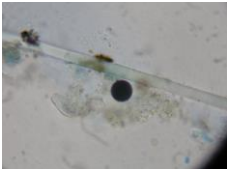
Classification: Contaminant / Opportunistic pathogen

Possible Health Effect: Associated with eye infections and occasionally skin and nail. Produces a variety of toxins mainly important when ingested particularly through contaminated grain products. Reports of infections in burn victims and compromised hosts.

Macroscopic Morphology: It grows quickly and is at first white and cottony but will turn pinkish with age.

Environment: Found on fruit and grains and common in soil. Indoors it can sometimes contaminate humidifiers.



Definition	Images	
Hyphal Fragments (hy-full) Classification: N/A Possible Health Effect: N/A Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone. Environment: N/A	 	
Myxomycete / Periconia / Smut (mix-oh'-my-seat) / (pare-i-cone-ee-uh) / (smut) Classification: Generally a plant pathogen Possible Health Effect: Generally plant pathogens. Some allergenic properties have been reported but generally pose no health concerns to humans. Macroscopic Morphology: N/A Environment: This group is associated with living and decaying plants as well as decaying wood. Sometimes can be found indoors. <i>*myxomycete is technically not a mold but we have included it in this group due to morphological similarities.</i>		
Nigrospora (nigh-grow-spore-uh) Classification: Saprophyte, not known to be pathogenic. Possible Health Effect: Rarely Reported Macroscopic Morphology: Woolly, white then gray with age. Environment: Worldwide in soil, parasitic and saprophytic on plants.	 	
Pithomyces (pith-oh-my-cees) Classification: Contaminant Possible Health Effect: No reports of allergies or infections. Macroscopic Morphology: Light to dark brown and cottony, sometimes showing tufts of distinct fluff in the middle of colony. Environment: Worldwide, soil, plant materials, saprophyte, rarely found indoor, but can grow on paper.	 	
Yeast-like fungi Classification: This is a category we assign to spores that have morphological characteristics similar to yeast Examples of yeast like mold are Acremonium and Exophiala	 	

Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

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PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24 Filed 05/18/26

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**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

Air Exam FAQ

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

How do I know if the air sample results are normal?

The general guideline is that the concentration and types of mold in the inside sample should be similar to or lower than the concentration in the Outside sample. Currently there are no dose response relationship statistics for allowable or safe levels of aeroallergens.

What is the Air Calculated Concentration?

The Calculated Concentration is a measure of the concentration of mold spores in the air, and is listed as spores per cubic meter of air. It is useful for comparing samples and understanding how many spores are in a given section of air. This is calculated based on the air flow rate of the pump, the time the pump was run for, the proportion of the sample enumerated, and the raw count. It is calculated as $((100/\text{Proportion of Sample Analyzed})/(\text{Air Flow Rate} * \text{Pump Run Time})) * (\text{Raw Count})$. This number is then rounded to two significant figures. The calculated concentration is useful for comparing samples with different volumes, sample types, and counting methods. It is also useful for understanding how many spores there are in a given section of air. If you believe that the air flow rate and pump run time may be incorrect for some or all of your samples, please contact the lab and we can correct this for you.

What is the Raw Count on the report?

The 'raw' count is how many spores the technician actually viewed on your sample while looking through the microscope. We use this number to generate the calculated concentration. Moldlab stops counting spores at 100 and reports the raw count as '>100'.

Can you tell me a little more about mold air samples?

This type of sample is a non-cultured air sample, which means the lab did not grow the samples in a Petri dish, and is commonly referred to as a "snapshot" of the air at the exact time of sampling. The test works by pumping a controlled volume of air through a collection container called a spore trap. The spore trap has a sticky substance on its surface which captures any particles from the air, including mold spores. Test results account for both live and dead spores.

What is the 'debris field rating'?

The 'debris field rating' is a visual estimate made by the technician of how much non-fungal debris there is on the sample. The rating includes all non fungal particulate (fibers, debris, pollen, insects, skin, etc.). The scale includes ratings of 'None Detected', 'Trace', 'Minor', 'Moderate', 'Heavy', and 'Occluded'. None Detected indicates no sample was detected on the sample (possibly due to a bad sample). Trace indicates trace amounts of debris are present. Minor indicates small amounts of debris are present. Moderate indicates an average amount of debris is present. Heavy indicates a high concentration of debris articulate. Lastly, Occluded indicates the amount of particulate on the sample is so concentrated that the technician could not see through it to count and identify spores accurately. The higher the debris rating, the greater the negative bias of results.

What is a 'significant figure'?

Significant figures are used in science to give a better representation of the accuracy of a number. All non-zero digits in a number are significant. Additionally, any digits to the right of a decimal are significant, whether they are zero or not, and all digits in between two non-zero digits are also significant. Significant figures give an understanding of what decimal place a number is accurate to. For example, if 43 is given as 43.0, it is assumed that the "true" value is somewhere between 42.95 and 43.049. If it is given as 43.00, it is assumed the "true" value is somewhere between 42.995 and 43.0049, which is much more precise. Similarly, if 431 is shown as 431, it is assumed that the analysis is accurate to between 430.5 and 431.49, while if it is given as 430, it is only assumed to be accurate to between 425 and 434.9. In this report, all calculated numbers such as the minimum reporting limit and the calculated concentration are rounded to two significant figures. All numbers that were not calculated are given without rounding.

What is the 'minimum reporting limit'?

A minimum reporting limit is exactly what it sounds like- the minimum number that must be reported for the calculated concentration if any spores are detected. This is calculated as $(100/\text{Proportion of Sample Analyzed})/(\text{Air Flow Rate} * \text{Pump Run Time})$. This number is essentially the amount a single spore increases the calculated concentration by. All spore types that are not listed as having a raw count of 1 or greater have a calculated concentration of less than the minimum reporting limit. It cannot be said based upon a raw count of zero that the true concentration of that spore type is 0, however, because the testing procedure is not sufficiently precise. For this reason, the minimum reporting limit gives a useful measure of the minimum detectable concentration of mold types. Bear in mind that any negative bias due to the debris field rating IS NOT accounted for in this minimum reporting limit.

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

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LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.

moldlab

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Toll Free (866) 416-6653
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Report

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Sample No:	101725-01	Analysis Date:	10/18/2025	Sample Type:	Swab
Location:	Entry Drywall				

Identification	Rating
Alternaria	Minor
Ascospores, non-specified	Minor
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	Minor
Curvularia	Minor
Myxomycetes/Periconia/Smut/Rust	Minor
Nigrospora	Minor
Non-specified spore	Minor
Pithomyces	Minor
Hyphal Fragments	Minor

Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

Results apply only to samples tested. Results may not be reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. Field blank correction of results is not applied. Rating is based on the average Qualified Structures (QS) per Field of View (FV). A QS is the analyte of interest chosen by the client. No Mold Detected (0 QS), Minor (1 QS/FV or less), Moderate (>1 to 3 QS/FV), and Heavy (>3 QS/FV) ratings are used. QS observed from the samples submitted are listed on this report. If a QS is not listed, it was not observed in the samples submitted. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.



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Toll Free (866) 416-6653
Website - www.moldlab.com

Direct Exam FAQ

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

This test report contains the following sections: Cover, Report, FAQ, and Glossary

What does the rating system mean?

Mold is a normal part of our environment, and mold spores can settle out of the air into accumulated dust. This can cause 'minor' ratings of several different types of mold to appear even in a typical house dust sample, and these may not necessarily be a cause for concern. However, a 'heavy' rating may indicate that the sample was taken from a source of mold. Below are the exact criteria for each rating:

- 'No mold detected' means that the sample submitted did **not** contain a detectable level of mold.
- 'Minor' means that the technician observed 1 or fewer structures of mold per field of view under the microscope.
- 'Moderate' means 1 to 3 structures of mold were detected per field of view.
- 'Heavy' means greater than 3 structures were detected per field of view.

Always take into consideration the sample as a whole when interpreting results. It is important to also consider the types of mold detected and the location the sample was taken.

How do I learn more about the types of mold listed on my report?

Each report comes with its own mold dictionary, called the Glossary. Simply scroll to the Glossary section of your report and each mold type is listed alphabetically. There you'll find helpful information about each mold type.

Do I have the Black Mold?

Usually when a customer asks this question he/she is referring to Stachybotrys. Although Stachybotrys is black in color, so are many other types of mold. Do not discount the importance of other types of mold listed on your report simply because you do not see the word Stachybotrys or Black mold. For more about 'black mold', visit our website at: <https://www.moldlab.com/black-mold>

How do I get rid of it?

Many molds are allergens and some may be toxigenic. Disturbing the mold with cleaning methods increases the chances of exposure to the particulate. Mold clean up and disposal methods vary greatly from company to company. A good rule of thumb is that if the contaminated area is small and the material is non porous, such as metal, it can be cleaned by traditional methods, taking care to use personal protective equipment. Porous materials on the other hand, such as wood, textiles, or sheetrock, are difficult to clean because of the microscopic holes in the material. The 'root-like' structures of the mold called hyphae/mycelia can grow down into the holes and make it hard to clean effectively. The surface will appear clean but as soon as conditions are favorable the mold can start to grow again. Here is a link to the EPA mold help guide: <https://www.epa.gov/mold/brief-guide-mold-moisture-and-your-home>

Can we still live here?

There are no established 'safe' levels of mold, just as there are no established 'unsafe' levels of mold, and individuals have different resistances and reactions to mold. Persons that are most likely to be adversely affected by mold exposure are: children, elderly, immunocompromised, and persons with respiratory disorders. If you suspect you are experiencing adverse health effects as a result of mold, please consult a medical professional. Please note that Moldlab, Ltd. is not a medical, or clinical laboratory and we do not offer medical consulting or advice.

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

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LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.


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Toll Free (866) 416-6653
Website - www.moldlab.com

This test report contains the following sections: Cover, Report, FAQ, and Glossary

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus. The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

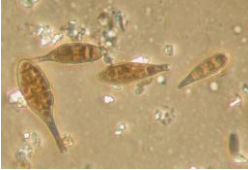
Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition	Images
Alternaria (all-tur-nair'ee-uh) Classification: Common Allergen / Contaminant / Opportunistic Pathogen (rarely) Possible Health Effect: It is an important allergen and common agent of hay fever, asthma, and other allergy related symptoms, including sinusitis. Macroscopic Morphology: The mold can appear gray / white at first than become greenish / black or brown with a lighter border over time. Environment: Soil, Plants, Commonly found indoors on food and textiles.	 

Definition

Images

Ascospores, non-specified (ass-co'-spores)

Classification: These are a very large category of spores.

Possible Health Effect: Because so few of the Ascomycetes will grow in the laboratory setting, very little is known about their health effects on humans.

Macroscopic Morphology: Most will appear as specks or spots or bumps on leaves and wood.

Environment: Leaves, Wood. Also, most are plant saprophytes playing the role of "recyclers". Spores are produced in sac-like structures called asci.



Bipolaris/Dreschlera/Helminthosporium/Exserohilum types (bye-pole-air-us)(dresh-lair'-uh) /

Classification: Contaminant / Opportunistic pathogen

Possible Health Effect: Allergenic and the most common agent for allergic fungal sinusitis. Various but uncommon infections of the eye, nose, lungs and skin in debilitated hosts.

Macroscopic Morphology: The mold will appear brownish / black with a black matted middle and a raised lighter color periphery.

Environment: The fungus is a saprophyte and can be found in soil.



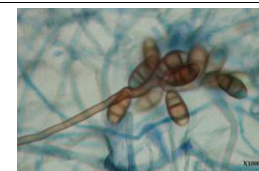
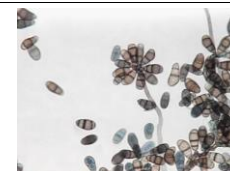
Curvularia (curve-you-lair'-ee-uh)

Classification: Contaminant / Opportunistic Pathogen

Possible Health Effect: Some sources site it as an allergen. Rare infections of the cornea, nail and sinuses primarily in Immunocompromised individuals.

Macroscopic Morphology: The mold appears as olive green to brown or black with a pink wooly surface.

Environment: The mold is common in the air and in the soil as a saprophyte and in textiles and decaying vegetation.



Hyphal Fragments (hy-full)

Classification: N/A

Possible Health Effect: N/A

Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone.

Environment: N/A



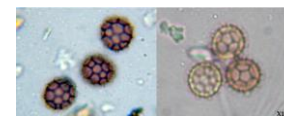
Myxomycete / Periconia / Smut (mix-oh'-my-seat) / (pare-i-cone-ee-uh) / (smut)

Classification: Generally a plant pathogen

Possible Health Effect: Generally plant pathogens. Some allergenic properties have been reported but generally pose no health concerns to humans.

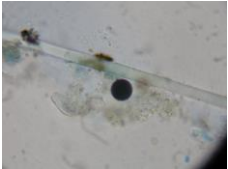
Macroscopic Morphology: N/A

Environment: This group is associated with living and decaying plants as well as decaying wood. Sometimes can be found indoors.



**myxomycete is technically not a mold but we have included it in this group due to morphological similarities.*

Tech Notes:

Definition	Images	
<u>Nigrospora</u> (nigh-grow-spore-uh) Classification: Saprophyte, not known to be pathogenic. Possible Health Effect: Rarely Reported Macroscopic Morphology: Woolly, white then gray with age. Environment: Worldwide in soil, parasitic and saprophytic on plants.	 	
<u>Non-specified spore</u> The spore is NOT Stachybotrys, and could not be identified as any of the other mold types this lab identifies. It may be an unusual mold type that is not identifiable microscopically, or the spore may be damaged. However, the spore was definitively fungal. Classification: N/A Macroscopic Morphology: N/A Environment: N/A		
<u>Pithomyces</u> (pith-oh-my-ceeds) Classification: Contaminant Possible Health Effect: No reports of allergies or infections. Macroscopic Morphology: Light to dark brown and cottony, sometimes showing tufts of distinct fluff in the middle of colony. Environment: Worldwide, soil, plant materials, saprophyte, rarely found indoor, but can grow on paper.	 	

Tech Notes:



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MOLD REMEDIATION PROTOCOL

**Project No: Weinstein-090225
Inspection Date: 09/02/2025
Remediation Protocol Date:
09/08/2025**

Prepared By:

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Licensed Mold Assessment Consultant - TDLR # MAC1687, Exp. 02/27/2026
Licensed Mold Remediation Contractor - TDLR # MRC1602, Exp. 04/02/2027

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Section 1.0 Project Background

1.1 Site Description

Building Type: Residential, Multi-Family, Apartment, 1st Floor, Slab Foundation

Age: 2019

Scope: Demolition, Content Cleaning, Environmental Cleaning, HVAC System and Duct Cleaning

1.2 Initial Observations and Findings

Clients requested a mold inspection and remediation protocol write-up after a water loss related to the HVAC condensation drain line caused water damage to the mechanical closet and guest bedroom of this unit.

At the time of inspection the humidity is ~63% Rh and there is visible growth on the inside of the utility closet, behind baseboard in the hallway, and behind baseboard in the guest bedroom behind the utility closet.

The laminate flooring surrounding the area has elevated moisture readings.

Remediation workers put up some containment. There is no equipment on site and no negative pressure on the containment.

Air samples were collected in the mechanical closet hallway, guest bedroom, living room, and master bedroom for comparison with an outdoor air sample.

Tape lift samples were collected from visible growth on the drywall in the hallway and in the guest bedroom for lab analysis.

FINDINGS and RECOMMENDATIONS:

The indoor air samples show contamination with *Aspergillus* and *Chaetomium* mold spores throughout the apartment. *Chaetomium* mold is associated with long-term water damage on building materials.

Due to elevated molds in the air samples, all contents in the apartment should be considered contaminated.

See lab results on next page.

See pictures on pages 12-14.

Recommending mold remediation, content cleaning, environmental cleaning, and HVAC cleaning as outlined in this protocol on **pages 7-11**.

STATE NOTIFICATION

The material to be removed and cleaned is greater than 25 square feet which requires state notification and a 5-day waiting period before remediation can begin. The total of all material removal specified in this protocol is based on areas of visible mold growth, elevated moisture levels, and visible water damaged material observed during the mold inspection performed on 09/02/2025.

Section 1.3

Initial Microbial Sampling Results

Air samples collected using Zefon Bio-Pump with Air-O-Cell cassette at a flow rate of 15 LPM.

Baseline outdoor sample collected and indoor air samples collected in the mechanical closet hallway, guest bedroom, living room, and master bedroom.

Surface tape lift samples collected from visible growth in the hallway and in the guest bedroom behind the baseboards.

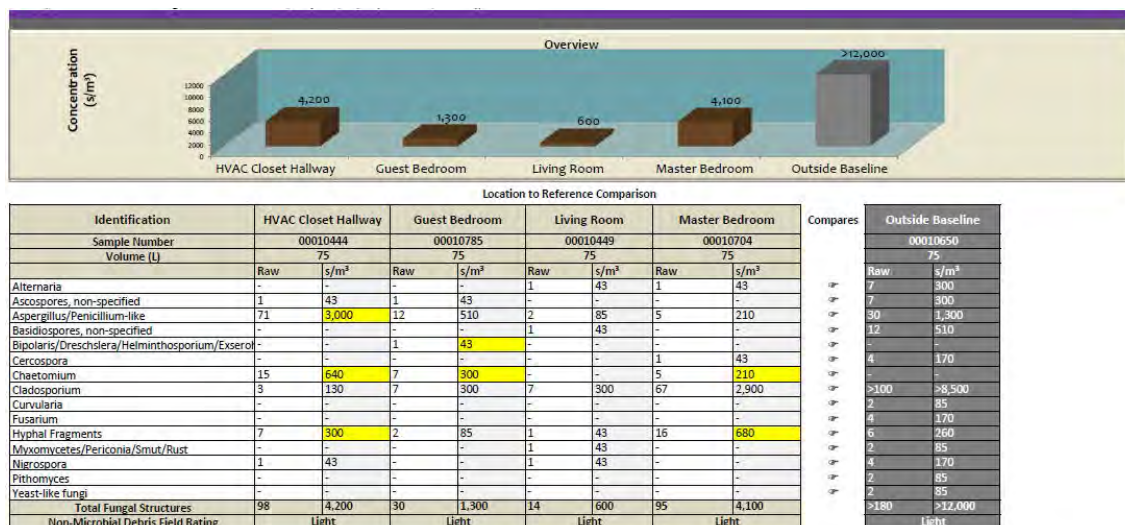
RESULTS: The indoor air samples identified elevated *Aspergillus* mold spores in the mechanical closet hallway and the presence of *Chaetomium* mold spores in the hallway, guest bedroom, and master bedroom air samples.

The tape lift sample from the drywall in the guest bedroom identified a **heavy concentration** of *Chaetomium* mold spores and a **minor concentration** of *Aspergillus* and *Cladosporium* mold spores.

The tape lift sample from the drywall in the utility closet hallway identified a **heavy concentration** of *Chaetomium* mold spores.

See Lab Snapshots below and Full Lab Reports for more information

Air Samples



Surface Tape Lift Samples

Sample No:	090425-01	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	Guest Bedroom Tape Lift				
<u>Identification</u>		<u>Rating</u>			
Aspergillus/Penicillium-like		Minor			
Chaetomium					Heavy
Cladosporium		Minor			
Hyphal Fragments					Heavy

Sample No:	090425-02	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	HVAC Closet Drywall Tape Lift				
<u>Identification</u>		<u>Rating</u>			
Chaetomium					Heavy
Hyphal Fragments					Heavy

Sample collection and analyses were performed according to Minimum Work Practices and Procedures for Mold Assessment of the Texas Mold Assessment and Remediation Rules. Microbial samples collected by Dallas Mold Consultants are submitted under chain of custody to The Moldlab, a Texas licensed lab (TDSHS license #LAB0137). If samples were collected, full lab report will be sent as a separate attachment.

Section 1.4

Reliance

This protocol is for the exclusive use of the client for the project being discussed. This protocol is not a certificate, assurance, warranty or guarantee of future conditions or performance, but is specific to the conditions present and detected on the date of the mold inspection. This protocol is valid for 60 days from the day it was written.

The Texas Department of Licensing and Regulation regulates mold remediation in the state by administering the Texas Mold Assessors and Remediators Occupations Code and Administrative Rules. Additional information regarding the Texas Mold Program and the state mold statute can be found on their homepage at www.tdlr.texas.gov/mld/mld.htm.

Anyone who believes a company or individual has violated the rules can file a complaint with TDLR. For information on this process, call 1-800-803-9202, or complete the online complaint form.

Texas Department of Licensing and Regulation
Enforcement Division
P.O. Box 12157
Austin, TX 78711
enforcement@tdlr.texas.gov
www.tdlr.texas.gov/complaints

Section 2.0

Regulations and Notices

2.1 Texas Mold Assessment and Remediation Regulations

It is critical that licensed, trained, and qualified mold remediation professionals perform the clean-up work. Mold Remediation should be performed to the standards found in IICRC S520, Standard and Reference Guide for Mold Remediation, and in accordance with the laws of the state of Texas. In accordance with the Texas Mold Assessment and Remediation Rules (Rules), 16 Tex. Admin. Code, Chapter 78, if a licensed Remediation Contractor is doing the mold remediation, a Mold Remediation Protocol is required.

According to the Texas Department of Licensing and Regulation (TDLR) Texas Mold Assessors and Remediators Administrative Rules, state notification is required if more than 25 contiguous square feet of mold contaminated material is affected in any one area. This notification requires a five (5) business day waiting period between the notification date and the remediation start date. This client is encouraged to work with a licensed Mold Remediation Contractor to ensure minimal project disruption and down time should this remediation effort exceed the state mandated limits and have to be registered.

Contaminated materials should be removed using appropriate containment and removal practices in accordance with the TMARR. Proper engineering controls must be in place to prevent the further spreading of airborne mold spores.

2.2 TAHPR - Texas Asbestos Health Protection Rules

The current Texas Asbestos Health Protection Rules require that an asbestos survey be performed by Department of State Health Services licensed persons prior to the commencement of renovation or demolition activities that could disturb asbestos-containing materials within a public building. Materials such as drywall, drywall texture and joint compound, ceiling texture/acoustical materials, flooring materials, ceiling tiles, as well as vinyl flooring products and adhesives can contain asbestos.

2.3 Lead Based Paint

Pre-renovation education requirements:

Firms that perform renovations for compensation in residential houses, apartments, and child-occupied facilities built before 1978 are required to distribute EPA's lead hazard information pamphlet "Renovate Right" before starting renovation work.

The firm must document compliance with this requirement; EPA's pre-renovation disclosure form may be used for this purpose.

Training, certification, and work practice requirements:

Firms are required to be certified, their employees must be trained in the use of lead-safe work practices (either as a certified renovator or on-the-job by a certified renovator), and lead-safe work practices that minimize occupants' exposure to lead hazards must be followed.

Examples of lead-safe work practices include:

Work-area containment to prevent dust and debris from leaving the work area.

Prohibition of certain work practices like open-flame burning and the use of power tools without HEPA exhaust control.

Thorough clean up followed by a verification procedure to minimize exposure to lead-based paint hazards.

Section 3.0 Containments and PPE

Section 3.1 Containment

Pack-out contents for cleaning. Build a single-stage containment around the affected walls in the bedroom, living room, mechanical closet, and hallway. Establish negative pressure using air scrubbers with CLEAN HEPA-rated filters. **Vent outside through a window to remove organic vapors.**

Place air scrubbers outside the containment to clean up contamination from scattered mold spores.

Maintain 4 air changes per hour.

Utilize dehumidifiers to maintain humidity between 30-50% Rh.

Seal HVAC supply vents and/or return air vents in remediation area(s)

Signs advising that a mold remediation project is in progress shall be displayed at all accessible entrances to remediation areas. The signs shall be at least eight 8 inches by ten 10 inches in size and shall bear the words "NOTICE: Mold Remediation Project In Progress" in black on a yellow background. The text of the signs must be legible from a distance of ten 10 feet.

Section 3.2 Personal Protective Equipment (PPE)

Minimum PPE

FULL PPE REQUIRED

Gloves

Disposable Full Body Clothing

Head Gear

Foot Coverings

Full-Face Respirator with HEPA Filter

The remediation contractor shall insure that OSHA appropriate personal protective equipment (PPE) is worn while remediating all containment areas.

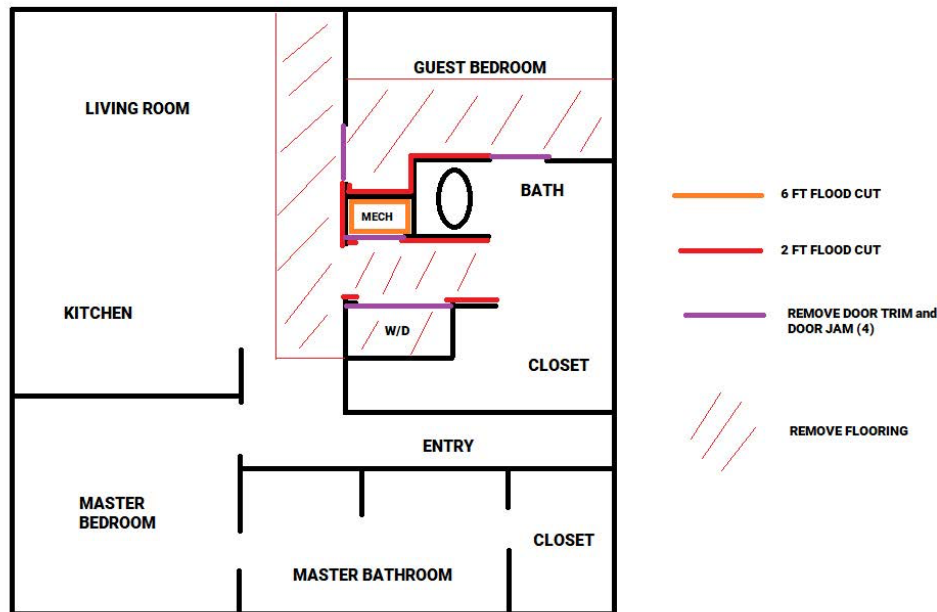
Use professional judgment, consider potential for remediator exposure and size of contaminated area. Contractor assumes all responsibility for PPE compliance.

The EPA Guidelines for Remediation of Building Materials with Mold Growth by Clean Water requirements for PPE should be followed. The complete table is included at the end of this document in U.S. EPA Cleaning Methods, Table 2.

Note: Professional judgment should always play a part in PPE decisions. The EPA guidelines are based on the total surface area contaminated and the potential for remediator and/or occupant exposure, not on the basis of health effects or research showing there is a specific method appropriate at a certain number of square feet. The guidelines have been designed to help construct a remediation plan. The remediation contractor will then use professional judgment and experience to adapt the guidelines to particular situations.

Section 4.0 Specific Remediation Requirements

Section 4.1 Project Diagram



- Follow all Containment Procedures in **Section 3.1**
- Remove door trim and door jams on 4 doors as indicated in PURPLE (W/D, Mechanical, Guest Bedroom, Guest Bathroom)
- Detach HVAC unit and remove platform
- 6 FT flood cut inside mechanical closet as indicated in ORANGE - approx 60 sq ft
- Cut out approx 9 sq ft CEILING in Mechanical Closet
- Remove 16 LF baseboard and 2 ft flood cut walls indicated in RED - approx 68 sq ft
- Remove 6 x 3 laminate flooring and underlayment in hallway
- Remove 3 x 6 laminate flooring and underlayment in W/D area
- Remove approx 11 x 4 section of laminate flooring in living room as indicated
- Remove approx 12 x 4 section of carpet in guest bedroom as indicated
- Follow all Cleaning Procedures in **Section 4.2** on next page

Section 4.0 Specific Remediation Requirements

4.2 Cleaning Procedures

- Follow all Containment Procedures in **Section 3.1**
- **CONTENTS:** Pack-out and clean contents according to **Table 2: EPA Cleanup Methods** at the end of this document. (HEPA vacuum/damp-wipe/steam clean) All washable soft contents (clothing, bedding, etc) should be washed according to manufacturer's instructions.
- **Cleaning Procedures For Demolition:**
 - Remove all insulation and other porous materials in wall cavities and thoroughly HEPA vacuum all dust and debris
 - Clean framing with HEPA vacuum and a grease cutting soap solution or an EPA approved mold cleaning product used according to the manufacturer's instructions. For wood framing, use a sander to remove the top layer of discoloration from the wood and HEPA vacuum all dust.
 - **DO NOT ENCAPSULATE FRAMING WITHOUT APPROVAL FROM THE MAC** -If any framing is not able to be adequately cleaned/sanded to remove mold growth or staining, please text post-cleaning pictures to 972-945-6653.
 - Inspect wall cavities for signs of contamination, hidden water damage and/or mold growth. Semi-porous building materials (framing, studs, joists, sub-floors, etc.) which cannot be adequately cleaned of fungal growth or containing rotten wood should be removed and disposed. If the integrity of any support structure is questionable, it should be replaced. Any materials removed should extend at least 24" past the last signs of water damage or visible mold growth.
 - Dry all wet materials. Wood moisture content should not exceed 15% after cleaning is performed. Air movers and dehumidification equipment should be utilized to dry the structure as needed.
 - HEPA vacuum and damp-wipe all surfaces in the contained area until there is no visible dust or debris
 - Dispose of all mold containing materials in double 6 mil poly and wipe the outside
- **HVAC:** Have a licensed HVAC professional clean the inside of the HVAC unit - coils, blower fans, plenums, etc. Visually inspect supply plenum for visible microbial growth and replace if necessary. Clean HVAC ducting under negative pressure with HEPA filtration. Change all filters and clean registers.
- **ENVIRONMENTAL CLEANING THROUGHOUT ENTIRE UNIT FOLLOWING DEMOLITION:** HEPA vacuum all surfaces. Damp-wipe all horizontal and dust collecting surfaces using a mild detergent solution. HEPA vacuum carpets multiple times in a criss-cross pattern followed by steam cleaning. Dry carpets thoroughly. Place an air scrubber in each bedroom and in the living room/kitchen area.
- *Air wash with fans and allow air scrubbers to run for 48 hours prior to clearance testing*

**The use of EPA registered disinfectants, biocides and antimicrobial coatings may be used; however, if the remediation contractor wishes to use an antimicrobial encapsulant prior to post remediation assessment, the assessment consultant must be contacted for discussion and approval of application areas prior to proceeding. Mold assessment consultant will require visual and/or photo confirmation from the remediation contractor regarding the area(s) in question prior to encapsulation being applied.*

NOTE: The steps outlined here are the minimum steps required for remediation. A remediation contractor may take additional or varied steps as dictated by their judgment and/or operating procedures to adequately abate the mold contamination. However, should significant variance from the above recommendations be required or other issues regarding remediation arise, the remediation contractor should first obtain concurrence from the Mold Assessment Consultant.

Section 5.0

Post Remediation Assessment and Clearance Criteria

Once the remediation has been completed, for the contaminated area(s) to achieve Clearance, a Post Remediation Inspection must be performed along with the collection and analysis of an appropriate number of samples.

Dallas Mold Consultants must be provided with a copy of the Remediation Contractor's Work Plan for the Mold Assessment Consultant to determine whether the remediation has been completed in accordance with this protocol.

Prior to obtaining final clearance the owner/agent must have repaired the underlying cause of the mold, so that it is reasonably certain that the mold will not return from the same cause.

The Mold Assessment Consultant shall perform a visual, procedural, and analytical evaluations in the impacted area(s) to determine whether the remediation has been performed according to the Remediation Protocol provided for this project.

5.1 Visual Inspection

A thorough visual inspection of the containment area(s) or remediation areas will be performed. All areas should be left dry and visibly free of all visible microbial contamination and debris.

Under no circumstances should any encapsulant and primers be applied to any surfaces prior to the Post-Remediation, Inspection and Clearance Testing unless approved by the Mold Assessment Consultant.

Containments must remain in place until Clearance Lab Results.

5.2 Sampling

The sample analysis must reveal no mold growth on any surface sampled and airborne mold counts must be statistically similar to outdoor air for corresponding mold types and total indoor air mold spore concentrations must be generally lower than outdoor mold spore concentrations. IICRC S520 Clearance Standards apply.

1. One air sample from inside each containment or work area where mold was previously detected (one per area).
2. One indoor control air sample from inside the property outside of the containment(s) or work area(s).
3. One to two surface sample(s) per affected area where mold growth was previously observed.
4. At least one outdoor air sample required as a baseline for the Lab.

5.3 Clearance Criteria

The Clearance Investigation and Testing is conducted when mold remediation and cleanup efforts are completed but before containment is removed and renovation activities have begun.

The purpose of the clearance investigation is to ensure that remediation activities have been completed as outlined in the Remediation Protocol, containment has been maintained, all dust and debris have been removed from the containment areas, and no malodors or visible mold is present.

Clearance testing consists of a visual assessment for mold problems in area(s) of remediation activities and the collection/analysis of a tape lift sample and an air quality test in these designated area(s). Clearance is defined as tape and air samples collected indoors being quantitatively equal to or less than outdoor samples, and qualitatively similar. There are no exposure limits for the swab or tape lift sample.

As a general rule acceptable clearance of a containment area is reached when the genus of fungi collected from indoor air are equal to or less than outdoor air. Marker spores such as Chaetomium or Stachybotrys that are measured at more than 2 spores in the air test will result in the area not being cleared. Total average spore counts in the containment area should not exceed 2,000, and a single spore category should not exceed 1,000. In addition, the rank order and type of organism identified may indicate interior contamination and related need for additional action.

If the containment area has dust, debris, breached containment, lack of quality control related to remediation specifications the inspector will not conduct further clearance activities. The client will be informed of observed project deficit concerns for communication with the Mold Remediation Contractor. In addition, if visible mold is present, a tape lift and swab sample is collected for lab analysis.

NOTICE to CLIENT:

Part of the clearance process is ensuring that the source of the problem has been addressed to ensure the problem doesn't reoccur. As the homeowner, you agree to address all sources of water intrusion. Once the restoration/remediation efforts have commenced, you agree and understand that it is NOT SAFE for you to re-enter the contained space until a clearance has been achieved. By doing so you may breach the containment, cross-contaminate the other parts of your home and delay the process. If clearance is not achieved on the first attempt, the contractor will be required to re-clean and let the air scrubbers run for an additional time. After the first clearance test, subsequent clearance inspection costs will be at the restoration contractor's expense, UNLESS it is found that the client has entered and breached the containment area during clearance efforts.

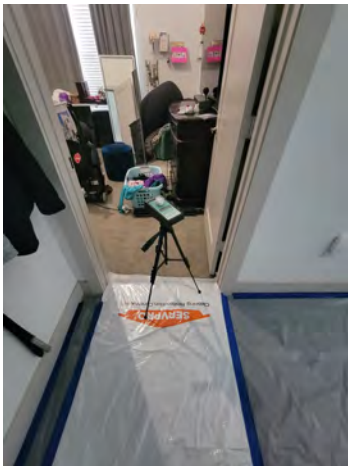
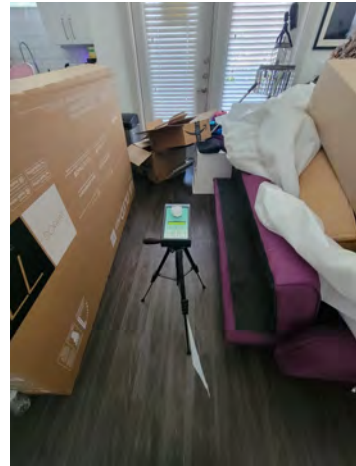
By engaging this project, the contractor also agrees to these terms.

Client's Initials: _____

Section 6.0

6.1 Photographic Documentation

Air Samples - Temperature - Humidity Readings

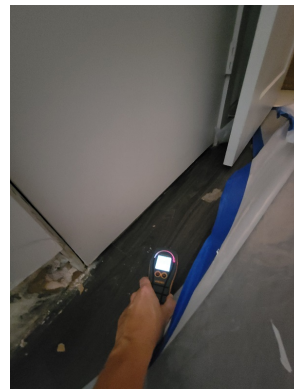
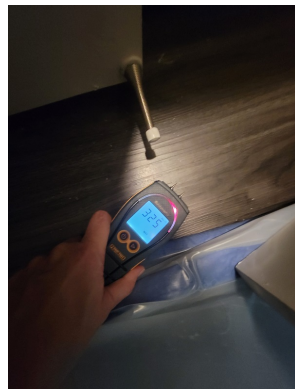
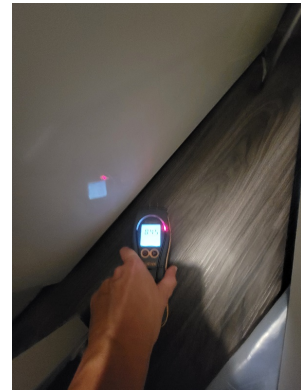
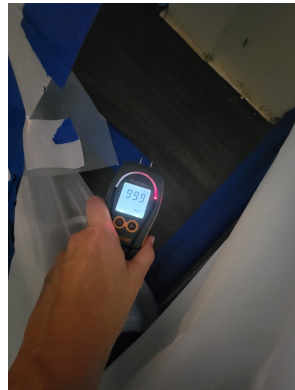
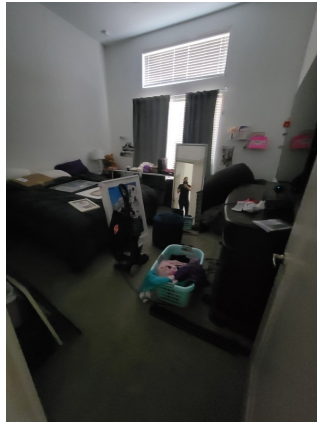


**Guest Bedroom Drywall
Tape Lift Sample**

**Utility Hallway Drywall Tape
Lift Sample**

6.1 Photographic Documentation (Continued)





Section 7.0 Credentials

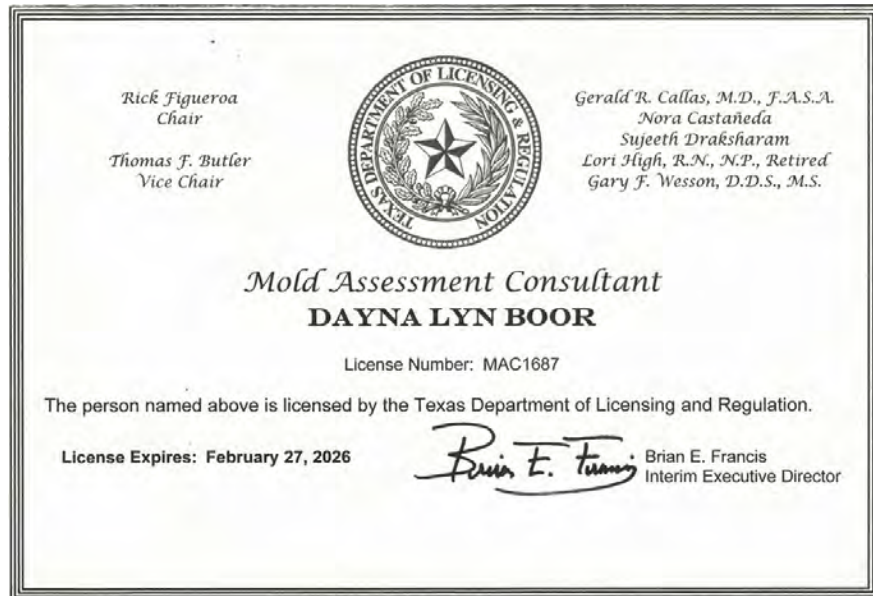


Table 2: Guidelines for Remediating Building Materials with Mold Growth Caused by Clean Water*

Material or Furnishing Affected	Cleanup Methods [†]	Personal Protective Equipment	Containment
SMALL – Total Surface Area Affected Less Than 10 square feet (ft²)			
Books and papers	3	Minimum N-95 respirator, gloves, and goggles	None required
Carpet and backing	1, 3		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3		
Wallboard (Drywall and gypsum board)	3		
Wood surfaces	1, 2, 3		
MEDIUM – Total Surface Area Affected Between 10 and 100 (ft²)			
Books and papers	3	Limited or Full Use professional judgment, consider potential for remediator exposure and size of contaminated area	Limited Use professional judgment, consider potential for remediator/occupant exposure and size of contaminated area
Carpet and backing	1, 3, 4		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3, 4		
Wallboard (Drywall and gypsum board)	3, 4		
Wood surfaces	1, 2, 3		
LARGE – Total Surface Area Affected Greater Than 100 (ft²) or Potential for Increased Occupant or Remediator Exposure During Remediation Estimated to be Significant			
Books and papers	3		Full Use professional judgment, consider potential for remediator/occupant exposure and size of contaminated area
Carpet and backing	1, 3, 4		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3, 4		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3, 4		
Wallboard (Drywall and gypsum board)	3, 4		
Wood surfaces	1, 2, 3, 4		

EPA Cleanup Methods

Use professional judgment to determine prudent levels of Personal Protective Equipment and containment for each situation, particularly as the remediation site size increases and the potential for exposure and health effects arises. Assess the need for increased Personal Protective Equipment, if, during the remediation more extensive contamination is encountered than was expected. These guidelines are for damage caused by clean water. If you know or suspect that the water source is contaminated with sewage, or chemical or biological pollutants, then the Occupational Safety and Health Administration (OSHA) requires PPE and containment. An experienced professional should be consulted if you and/or your remediator do not have expertise in remediating contaminated water situations. Select method most appropriate to situation. Since molds gradually destroy the things they grow on, if mold growth is not addressed promptly, some items may be damaged such that cleaning will not restore their original appearance. If mold growth is heavy and items are valuable or important, you may wish to consult a restoration/water damage/remediation expert. Please note that these are guidelines; other cleaning methods may be preferred by some professionals.

Cleanup Methods

Method 1: Wet vacuum (in the case of porous materials, some mold spores/fragments will remain in the material but will not grow if the materials is completely dried). Steam cleaning may be an alternative for carpets and some upholstered furniture.

Method 2: Damp-wipe surfaces with plain water or with water and detergent solution (except wood-use wood floor cleaner); scrub as needed.

Method 3: High-efficiency particulate air (HEPA) vacuum after the material has been thoroughly dried. Dispose of the contents of the HEPA vacuum in well-sealed plastic bags.

Method 4: Discard - remove water-damaged materials and seal in plastic bags while inside of containment, if present. Dispose of as normal waste. HEPA vacuum area after it is dried.

Personal Protective Equipment (PPE)

Minimum: Gloves, N-95 respirator, goggle/eye protection

Limited: Gloves, N-95 respirator or half-face respirator with HEPA filter, disposable overalls, goggles/eye protection

Full: Gloves, disposable full body clothing, head gear, foot coverings, full-face respirator with HEPA filter

Containment

Limited: Use polyethylene sheeting ceiling to floor around affected area with a slit entry and covering flap; maintain area under negative pressure with HEPA filtered fan unit. Block supply and return air vents within containment area.

Full: Use two layers of fire-retardant polyethylene sheeting with one airlock chamber. Maintain area under negative pressure with HEPA filtered fan exhausted outside of building. Block supply and return air vents within containment area.

CONSUMER MOLD INFORMATION SHEET

State rules require licensed mold assessors and remediators to give a copy of this Consumer Mold Information Sheet to each client and to the property owner, if not the same person, before starting any mold-related activity [16 TAC 78.70].

How does Texas regulate businesses that do testing for mold or that do mold cleanup?

The Department of Licensing and Regulation (TDLR) regulates such businesses in accordance with the [Texas Occupations Code, Chapter 1958](#). Under the **Texas Mold Assessment and Remediation Rules (rules)** ([16 Tex. Admin. Code, Chapter 78](#)), all companies and individuals who perform mold-related activities in Texas must be licensed by TDLR unless exempt. (See Page 2 regarding owner exemptions.) Individuals must meet certain qualifications, have required training, and pass a state exam and criminal history background check in order to be issued a license. Applicants for a mold remediation worker registration must have training and pass a criminal history background in order to be registered by TDLR. Laboratories that analyze mold samples must also be licensed and meet certain qualifications. The rules set minimum work practices and procedures and also require licensees to follow a code of ethics. To prevent conflicts of interest, the rules also prohibit a licensee from conducting both mold assessment and mold remediation on the same project. While the rules regulate the activities of mold licensees when they are doing mold-related activities, the rules do not require any property owner or occupant to clean up mold or to have it cleaned up.

How can I know if someone is licensed?

A licensed individual is required to carry a current TDLR license certificate with the license number on it. A search tool and listings of currently licensed companies and individuals can be found at: <https://www.tdlr.texas.gov/LicenseSearch/>.

What is “mold assessment?”

Mold assessment is an inspection of a building by a **mold assessment consultant** or **technician** to evaluate whether mold growth is present and to what extent. Samples may be taken to determine the amount and types of mold that are present; however, sampling is not necessary in many cases. When

mold cleanup is necessary a licensed mold assessment consultant can provide you with a **mold remediation protocol**. A protocol must specify the estimated quantities and locations of materials to be remediated, methods to be used and clearance criteria that must be met.

What is meant by “clearance criteria?”

Clearance criteria refer to the level of “cleanliness” that must be achieved by the persons conducting the mold cleanup. It is important to understand and agree with the mold assessment consultant prior to starting the project as to what an acceptable clearance level will be, including what will be acceptable results for any air sampling or surface sampling for mold. There are no national or state standards for a “safe” level of mold. Mold spores are a natural part of the environment and are always present at some level in the air and on surfaces all around us.

What is “mold remediation?”

Mold remediation is the cleanup and removal of mold growth from surfaces and/or contents in a building. It also refers to actions taken to prevent mold from growing back. Licensed **mold remediation contractors** must follow a mold remediation protocol as described above and their own **mold remediation work plan** that provides specific instructions and/or standard operating procedures for how the project will be done.

Before a remediation project can be deemed successful, a mold assessment consultant must conduct a **post-remediation assessment**. This is an inspection to ensure that the work area is free from all visible mold and wood rot, the project was completed in compliance with the remediation protocol and remediation work plan, and that it meets all clearance criteria that were specified in the protocol. The assessment consultant must give you a **passed clearance report** documenting the results of this inspection. If the project fails clearance,

further remediation as prescribed by a consultant will be necessary.

What is a Certificate of Mold Damage Remediation?

No later than the 10th day after a mold remediation project stop date, the remediation contractor must sign and give you a **Certificate of Mold Damage Remediation**. The licensed mold assessment consultant who conducted the post-remediation assessment must also sign the certificate. The consultant must truthfully state on the certificate that the mold contamination identified for the project has been remediated and whether the underlying cause of the mold has been corrected. (That work may involve other types of professional services that are not regulated by the mold rules, such as plumbing or carpentry.) Receiving a certificate documenting that the underlying cause of the mold was remediated is an advantage for a homeowner. It prevents an insurer from making an underwriting decision on the residential property based on previous mold damage or previous claims for mold damage. If you sell your property, the law requires that you provide the buyer a copy of all certificates you have received for that property within the preceding five years.

How is a property owner protected if a mold assessor or remediator does a poor job or damages the property?

The rules require licensees to have commercial general liability insurance in the amount of at least \$1 million, or to be self-insured, to cover any damage to your property. Before hiring anyone, you should ask for proof of such insurance coverage. You may wish to inquire if the company carries additional insurance, such as professional liability/errors and omissions (for consultants) or pollution insurance (for contractors), that would provide additional recourse to you should the company fail to perform properly.

How is my confidentiality protected if I share personal information about myself with a company?

Under the code of ethics in the rules, to the extent required by law, licensees must keep confidential any personal information about a client (including medical conditions) obtained during the course of a mold-related activity. Further, you may be able to negotiate a contract to include language that other personal information be kept confidential unless disclosure "is required by law." However, licensees are required to identify dates and addresses of projects and other details that can become public information.

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Can property owners do mold assessment or remediation on their own property without being licensed?

Yes. A homeowner can take samples for mold or clean it up in the home without a license. An owner, or a managing agent or employee of an owner of a residential property is not required to be licensed, **unless** the property has 10 or more residential dwelling units. For non-residential properties, an owner or tenant, or a managing agent or employee of an owner or tenant, is not required to be licensed to do mold assessment or remediation on property owned or leased by the owner or tenant, **unless** the mold contamination affects a total surface area of 25 contiguous square feet or more. Please refer to 16 TAC §78.30 for further details on exceptions and exemptions to licensing requirements.

For more information about mold and the Texas Mold Assessment and Remediation Rules, contact:

Texas Department of Licensing and Regulation

Mold Assessors and Remediators

P.O. Box 12057, Austin, TX 78711

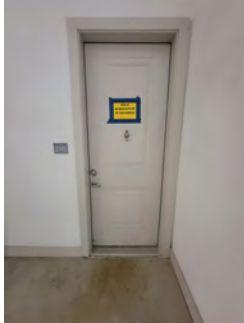
Phone: 512-463-6599 or 800-803-9202

www.tdlr.texas.gov

Re-inspection Report

Project No: Weinstein-090425

Inspection Date: 10/17/2025



**220 E Broadway Ave #2145
Ft. Worth, TX 76104**

Prepared By:

Dallas Mold Consultants
8080 N Central Expressway, Suite 1700
Dallas, TX 75206
972-945-MOLD (6653)
office@dallasmoldconsultants.com

Prepared For:

Weinstein Properties
Pamela Quinn
804.283.4708
pquinn@weinsteinproperties.com

NOTES: Mold testing was requested on an additional area of suspicion by the front door. The paint in the area does have an odd appearance and there is a dark substance that is suspected to be mold.

The drywall does not have elevated moisture readings.

A swab sample was collected from the area which revealed normal fungal ecology. To further rule out water damage and mold growth inside the wall cavity, exploratory measures such as removal of baseboard/door trim and removal of the drywall could be taken.

See pictures and lab snapshot on next page.

Full lab report sent as a separate attachment.

Written By:

A handwritten signature in dark ink, appearing to read "Dayna Boor".

Dayna Boor

Licensed Mold Assessment Consultant - TDLR # MAC1687, Exp. 02/27/2026

Licensed Mold Remediation Contractor - TDLR # MRC1602, Exp. 04/02/2027

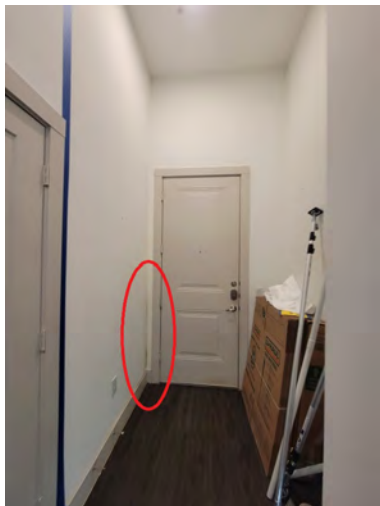
Lab Results

Sample No:	101725-01	Analysis Date:	10/18/2025	Sample Type:	Swab
Location:	Entry Drywall				
Identification		Rating			
Alternaria			Minor		
Ascospores, non-specified			Minor		
Bipolaris/Dreschlera/Helminthosporium/Exserohilum			Minor		
Curvularia			Minor		
Myxomycetes/Periconia/Smut/Rust			Minor		
Nigrospora			Minor		
Non-specified spore			Minor		
Pithomyces			Minor		
Hyphal Fragments			Minor		

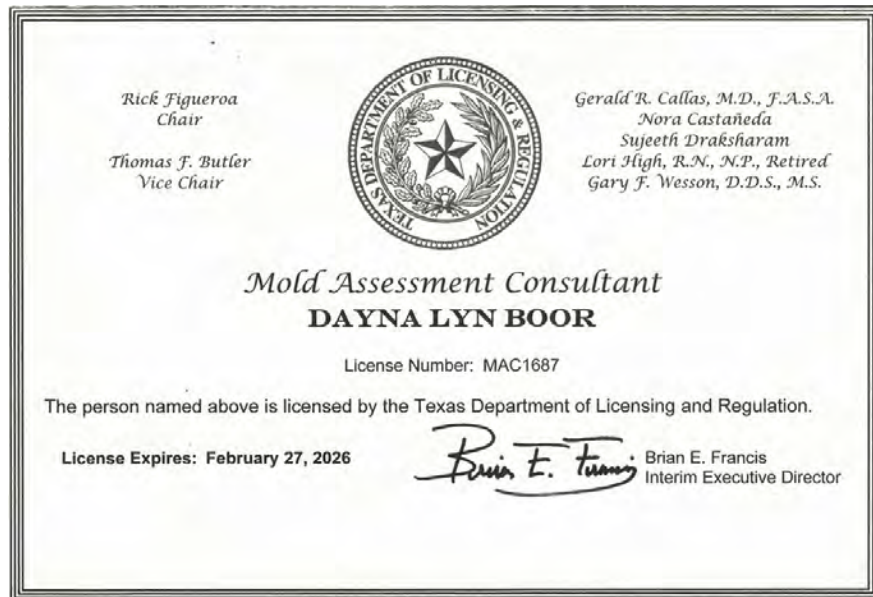


A surface swab sample collected from this area identified minor concentrations of Alternaria, Ascospores, Bipolaris, Curvularia, Myxomycetes, Nigrospora, and Pithomyces.

These minor concentrations are not indicative of mold growth on the drywall but rather normal fungal ecology on a surface.



Credentials





CONSUMER MOLD INFORMATION SHEET



State rules require licensed mold assessors and remediators to give a copy of this Consumer Mold Information Sheet to each client and to the property owner, if not the same person, before starting any mold-related activity [16 TAC 78.70].

How does Texas regulate businesses that do testing for mold or that do mold cleanup?

The Department of Licensing and Regulation (TDLR) regulates such businesses in accordance with the [Texas Occupations Code, Chapter 1958](#). Under the [Texas Mold Assessment and Remediation Rules \(rules\) \(16 Tex. Admin. Code, Chapter 78\)](#), all companies and individuals who perform mold-related activities in Texas must be licensed by TDLR unless exempt. (See Page 2 regarding owner exemptions.) Individuals must meet certain qualifications, have required training, and pass a state exam and criminal history background check in order to be issued a license. Applicants for a mold remediation worker registration must have training and pass a criminal history background in order to be registered by TDLR. Laboratories that analyze mold samples must also be licensed and meet certain qualifications. The rules set minimum work practices and procedures and also require licensees to follow a code of ethics. To prevent conflicts of interest, the rules also prohibit a licensee from conducting both mold assessment and mold remediation on the same project. While the rules regulate the activities of mold licensees when they are doing mold-related activities, the rules do not require any property owner or occupant to clean up mold or to have it cleaned up.

How can I know if someone is licensed?

A licensed individual is required to carry a current TDLR license certificate with the license number on it. A search tool and listings of currently licensed companies and individuals can be found at: <https://www.tdlr.texas.gov/LicenseSearch/>.

What is “mold assessment?”

Mold assessment is an inspection of a building by a mold assessment consultant or technician to evaluate whether mold growth is present and to what extent. Samples may be taken to determine the amount and types of mold that are present, however, sampling is not necessary in many cases. When

mold cleanup is necessary a licensed mold assessment consultant can provide you with a **mold remediation protocol**. A protocol must specify the estimated quantities and locations of materials to be remediated, methods to be used and clearance criteria that must be met.

What is meant by “clearance criteria?”

Clearance criteria refer to the level of “cleanliness” that must be achieved by the persons conducting the mold cleanup. It is important to understand and agree with the mold assessment consultant prior to starting the project as to what an acceptable clearance level will be, including what will be acceptable results for any air sampling or surface sampling for mold. There are no national or state standards for a “safe” level of mold. Mold spores are a natural part of the environment and are always present at some level in the air and on surfaces all around us.

What is “mold remediation?”

Mold remediation is the cleanup and removal of mold growth from surfaces and/or contents in a building. It also refers to actions taken to prevent mold from growing back. Licensed mold remediation contractors must follow a mold remediation protocol as described above and their own **mold remediation work plan** that provides specific instructions and/or standard operating procedures for how the project will be done.

Before a remediation project can be deemed successful, a mold assessment consultant must conduct a **post-remediation assessment**. This is an inspection to ensure that the work area is free from all visible mold and wood rot, the project was completed in compliance with the remediation protocol and remediation work plan, and that it meets all clearance criteria that were specified in the protocol. The assessment consultant must give you a **passed clearance report** documenting the results of this inspection. If the project fails clearance,

further remediation as prescribed by a consultant will be necessary.

What is a Certificate of Mold Damage Remediation?

No later than the 10th day after a mold remediation project stop date, the remediation contractor must sign and give you a **Certificate of Mold Damage Remediation**. The licensed mold assessment consultant who conducted the post-remediation assessment must also sign the certificate. The consultant must truthfully state on the certificate that the mold contamination identified for the project has been remediated and whether the underlying cause of the mold has been corrected. (That work may involve other types of professional services that are not regulated by the mold rules, such as plumbing or carpentry.) Receiving a certificate documenting that the underlying cause of the mold was remediated is an advantage for a homeowner. It prevents an insurer from making an underwriting decision on the residential property based on previous mold damage or previous claims for mold damage. If you sell your property, the law requires that you provide the buyer a copy of all certificates you have received for that property within the preceding five years.

How is a property owner protected if a mold assessor or remediator does a poor job or damages the property?

The rules require licensees to have commercial general liability insurance in the amount of at least \$1 million, or to be self-insured, to cover any damage to your property. Before hiring anyone, you should ask for proof of such insurance coverage. You may wish to inquire if the company carries additional insurance, such as professional liability/errors and omissions (for consultants) or pollution insurance (for contractors), that would provide additional recourse to you should the company fail to perform properly.

How is my confidentially protected if I share personal information about myself with a company?

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www.tdlr.texas.gov

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Direct Exam Chain of Custody

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

DALLAS MOLD CONSULTANTS
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Company name		Dallas Mold Consultants				moldlab					
Address		8080 N. Central Expy Ste 1700		City	Dallas	State	TX	ZIP	75206	FM-17 External 10 Line Chain of Custody Form	
Project name		Weinstein- 090425				Submitted By:		Dayna Boor			
Project address		220 E Broadway Ave #2145, Ft. Worth TX				ZIP	76104		Cell phone		214-606-1330
Project#(optional)		Turnaround Time				Email address:		dayna@dallasmoldconsultants.com			
Sample Date		09/04/2025		3HR	6HR	24HR	48HR	3DAY	5DAY	CC:	

Test Codes	MOLD				ASBESTOS				
	Air Samples		Surface Samples		7. PLM		8. PLM Point Count		
	1. Spore Trap: mold only 2. Spore Trap: mold & other particle		3. Tape/Swab/Bulk: mold only ratings 4. Tape/Swab/Bulk: mold & other particle ratings		9. Tape/Bulk: mold only - μcm^3 10. Tape/Bulk: mold & other particles - μcm^3				
Sample # or ID	Sample Name, Location or Description	Temp	R.H. %	Test code	Time on (applicable to air samples only)	Time off (applicable to air samples only)	Total Vol. (applicable to air samples only)	Sample Type (Bulk, Tape, Swab, Allergenic, etc.)	No. of Containers
1. 090425-01	Guest Bedroom Tape Lift	76	63	3				tape	1
2. 090425-02	HVAC Closet Drivall Tape Lift	76	63	3				tape	1
3. 00010444	HVAC Closet Hallway	76	63	1	11:39am	11:44am	75L	an	1
4. 00010785	Guest Bedroom	76	63	1	11:45am	11:50am	75L	an	1
5. 00010449	Living Room	76	63	1	11:52am	11:57am	75L	an	1
6. 00010704	Master Bedroom	76	63	1	11:58am	12:03pm	75L	an	1
7. 00010650	Outside Baseline	92	43	1	12:05pm	12:10pm	75L	an	1
8.									
9.									
10.									

Payment options	☐ Invoice to account	Released by (your signature)	By signing this document, you certify that these samples were not tampered with while under your care and accept the Moldlab, Ltd Terms of Service, available at moldlab.com/terms.
	☒ Process credit card on file		Time: 1:15pm
	☐ enclosed check#		Date: 09/04/2025
Field Notes:			
Special Instructions:			
Tracking #:			

Lab Job #

25-111919 25-111920

Rev. 7, Issue Date: 3/24/2022 2501 Mayes Road, Ste. # 110 | Carrollton, TX 75006 | info@moldlab.com | 1-800-416-6653 Page ___ of ___

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 9/4/2025 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

Page 1 | 1

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:

Kristina Rucker, Lab Director



moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24 Filed 05/13/26

Page 50 of 105



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

Report

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Sample No: 090425-01 **Analysis Date:** 9/5/2025 **Sample Type:** Tape /Bio-tape
Location: Guest Bedroom Tape Lift

Identification

Rating

Aspergillus/Penicillium-like

Minor

Chaetomium

Heavy

Cladosporium

Minor

Hyphal Fragments

Heavy

Sample No: 090425-02 **Analysis Date:** 9/5/2025 **Sample Type:** Tape /Bio-tape
Location: HVAC Closet Drywall Tape Lift

Identification

Rating

Chaetomium

Heavy

Hyphal Fragments

Heavy

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

Results apply only to samples tested. Results may not be reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. Field blank correction of results is not applied. Rating is based on the average Qualified Structures (QS) per Field of View (FV). A QS is the analyte of interest chosen by the client. No Mold Detected (0 QS), Minor (1 QS/FV or less), Moderate (>1 to 3 QS/FV), and Heavy (>3 QS/FV) ratings are used. QS observed from the samples submitted are listed on this report. If a QS is not listed, it was not observed in the samples submitted. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.

moldlab

2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com



Direct Exam FAQ

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

This test report contains the following sections: Cover, Report, FAQ, and Glossary

What does the rating system mean?

Mold is a normal part of our environment, and mold spores can settle out of the air into accumulated dust. This can cause 'minor' ratings of several different types of mold to appear even in a typical house dust sample, and these may not necessarily be a cause for concern. However, a 'heavy' rating may indicate that the sample was taken from a source of mold. Below are the exact criteria for each rating:

- 'No mold detected' means that the sample submitted did **not** contain a detectable level of mold.
- 'Minor' means that the technician observed 1 or fewer structures of mold per field of view under the microscope.
- 'Moderate' means 1 to 3 structures of mold were detected per field of view.
- 'Heavy' means greater than 3 structures were detected per field of view.

Always take into consideration the sample as a whole when interpreting results. It is important to also consider the types of mold detected and the location the sample was taken.

How do I learn more about the types of mold listed on my report?

Each report comes with its own mold dictionary, called the Glossary. Simply scroll to the Glossary section of your report and each mold type is listed alphabetically. There you'll find helpful information about each mold type.

Do I have the Black Mold?

Usually when a customer asks this question he/she is referring to Stachybotrys. Although Stachybotrys is black in color, so are many other types of mold. Do not discount the importance of other types of mold listed on your report simply because you do not see the word Stachybotrys or Black mold. For more about 'black mold', visit our website at: <https://www.moldlab.com/black-mold>

How do I get rid of it?

Many molds are allergens and some may be toxigenic. Disturbing the mold with cleaning methods increases the chances of exposure to the particulate. Mold clean up and disposal methods vary greatly from company to company. A good rule of thumb is that if the contaminated area is small and the material is non porous, such as metal, it can be cleaned by traditional methods, taking care to use personal protective equipment. Porous materials on the other hand, such as wood, textiles, or sheetrock, are difficult to clean because of the microscopic holes in the material. The 'root-like' structures of the mold called hyphae/mycelia can grow down into the holes and make it hard to clean effectively. The surface will appear clean but as soon as conditions are favorable the mold can start to grow again. Here is a link to the EPA mold help guide: <https://www.epa.gov/mold/brief-guide-mold-moisture-and-your-home>

Can we still live here?

There are no established 'safe' levels of mold, just as there are no established 'unsafe' levels of mold, and individuals have different resistances and reactions to mold. Persons that are most likely to be adversely affected by mold exposure are: children, elderly, immunocompromised, and persons with respiratory disorders. If you suspect you are experiencing adverse health effects as a result of mold, please consult a medical professional. Please note that Moldlab, Ltd. is not a medical, or clinical laboratory and we do not offer medical consulting or advice.

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

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Direct Exam Glossary

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

This test report contains the following sections: Cover, Report, FAQ, and Glossary

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus.

The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition

Images

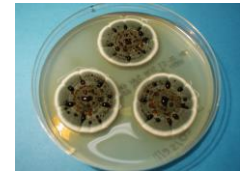
Aspergillus/Penicillium-like (as-per-jill-us) / (pen-uh-sill'ee-um)

Classification: Allergen / Contaminant / Opportunistic Pathogen

Possible Health Effect: Aspergillus is common on tape lift samples and air samples, but its spores are indistinguishable from Penicillium spores in most cases. There are a few exceptions but the species ID must be made from culture, and is still a difficult job. Health effects vary by species, but many are listed as allergens. Some species can produce toxins that may have significant health effects in humans. Aspergillus is listed as one of the most infectious types of mold, but infections are not common in normal healthy immune systems. However, if you are immune suppressed or compromised this should be discussed with your physician.

Macroscopic Morphology: Aspergillus can appear in a wide range of colors from white to purple, yellow to green, see images next to text.

Environment: Commonly found in the environment around the world.



Tech Notes:

Definition

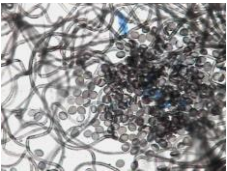
Images

Chaetomium (kay- toe-me-um)
Classification: Contaminant / some report allergen

Possible Health Effect: Rarely involved in systemic and cutaneous disease and sometimes reported to be allergenic. Some species can produce toxins, and there is some research interest on whether these toxins can cause cancer.

Macroscopic Morphology: The surface of the mold is cottony, spreading and becomes tan or gray with age. With close examination the surface sometimes will appear to have little black specks like pepper.

Environment: Chaetomium is one of the few Ascomycetes that will grow and produce spores indoors. It prefers to grow on cellulose for example paper and wood. Primary IAQ importance is that it will grow in the same conditions as Stachybotrys (wet cellulose) and sheetrock paper. Colonies of Chaetomium and Stachybotrys will be growing on top of one another. Also, found in soil and hay.

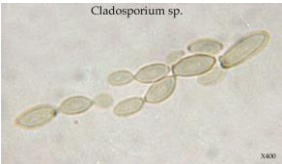


Cladosporium (clad-oh-spore-ee-um)
Classification: Common Allergen/ Contaminant

Possible Health Effect: Rarely pathogenic, it is a common agent of hay fever and asthma and other allergy related symptoms.

Macroscopic Morphology: Surface of the mold is greenish brown or can appear black in color with age and have heap or folded appearance.

Environment: Cladosporium can be found in most air samples most of the time. It is very common. Cladosporium is one of the types of mold found growing on HVAC vent covers and grills. It can grow on leaves, textiles, wood, paper, and decaying vegetation.



Hyphal Fragments (hy-full)
Classification: N/A

Possible Health Effect: N/A

Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone.

Environment: N/A



Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

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NO. 141-370402-25

WEINSTEIN MANAGEMENT CO.,
INC. AND WMC DALLAS X, LLC,
Plaintiffs and Counter-Defendants,

v.

KATHRYN COPELAND,
Defendant and Counter-Plaintiff.

§
§
§
§
§
§
§

IN THE DISTRICT COURT OF

TARRANT COUNTY, TEXAS

141ST JUDICIAL DISTRICT

Business Records Affidavit – Dayna Boor of Dallas Mold Consultants

STATE OF TEXAS §
COUNTY OF Dallas §

Before me, the undersigned authority, personally appeared **Dayna Boor**, who, being by me duly sworn, deposed as follows:

My name is **Dayna Boor**. I am of sound mind, capable of making this affidavit, and personally acquainted with the facts herein stated.

I am the **custodian of records** for **Dallas Mold Consultants**, a business engaged in mold assessment, testing coordination, reporting, and remediation protocol preparation in the State of Texas.

Attached hereto are 51 **pages of records** from **Dallas Mold Consultants**, consisting of mold inspection reports, remediation protocols, laboratory reports, chains of custody, and related documentation concerning the property located at **220 E. Broadway Avenue, Unit 2145, Fort Worth, Texas 76104**, prepared in connection with assessments performed in **September and October 2025**.

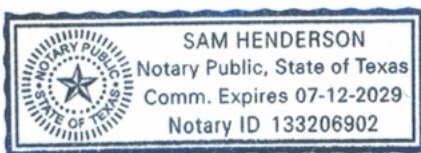
These 51 **pages of records** are kept in the **regular course of business** of Dallas Mold Consultants, and it was the regular course of business of Dallas Mold Consultants for an employee or representative with knowledge of the acts, events, conditions, opinions, or diagnoses recorded to make such records, or to transmit information thereof to be included in such records, **at or near the time** the events described occurred or **reasonably soon thereafter**.

The records attached hereto are the **original records or exact duplicates of the originals** maintained by Dallas Mold Consultants in the ordinary course of business.

Signed on 12/22/2025.

Dayna Boor
Affiant

SWORN TO AND SUBSCRIBED before me on 12/22/2025.



Sam Henderson
NOTARY PUBLIC, State of Texas

Printed Name: Sam Henderson

My Commission Expires: 07-12-2029

Subject: Re: Follow-Up on September 8 Mold Assessment Report
Date: Thursday, October 23, 2025 at 12:05:13 PM Central Daylight Time
From: Dayna Boor
To: Katie Copeland
Attachments: Weinstein-090425_Mold_Remediation_Protocol.pdf, Weinstein-090425_Reinspection_Report.pdf, Weinstein-090425_Air_Samples_Full_Lab_Report.pdf, Weinstein-090425_Tape_Lift_Full_Lab_Report.pdf, Weinstein-090425_Entry_Surface_Swab_Sample_Full_Lab_Report.pdf

Katie,

Please see attached reports. The remediation protocol was sent on 9/8. I was not initially made aware of the area by the front door but did go back and do an inspection of that area on 10/17. My swab sample collected by the front door on 10/17 did not find any *Stachybotrys* or anything unusual. I've attached my re-inspection report of that area. I did suggest that the baseboards and drywall in that area could be removed to further inspect.

For the contents - the remediation protocol calls for the contents to be packed-out of the apartment and cleaned according to EPA guidelines. The contents needed to be moved out so that the remediation company had room to perform a full environmental cleaning on the entire apartment.

I hope this information is helpful to you.

Dayna

On Thu, Oct 23, 2025 at 12:23 AM Katie Copeland <quinnandpoppy@gmail.com> wrote:

Ms. Boor,

I hope you're doing well. I received what appears to be your September 8, 2025 Mold Assessment and Remediation Protocol for Weinstein Properties – Unit 2145, Bowery at Southside.

Could you please confirm that this is your report? If so, would you prefer to provide a cleaner version with all components, including lab results, so I can be sure I'm reading it accurately?

Do your records indicate when and to whom the report was delivered? I assume it was shortly after completion, but I want to make sure I understand the timing correctly.

Your report notes that the client requested the assessment following a water loss from the HVAC condensation drain line affecting the mechanical closet and guest bedroom. Were you provided with or made aware of any prior mold assessments or lab findings from BioTex Inspections in June 2025, particularly results showing *Stachybotrys* or other toxic mold near the front door?

Finally, does your remediation protocol specify that licensed mold remediation is

required and that contents should not be removed until clearance testing confirms safety? The area of contents cleaning is a bit foreign to me so I want to get an understanding of how my belongings are meant to be handled.

I appreciate your time and professionalism. I'm not asking for confidential opinions—just confirming a few factual details for accuracy.

Sincerely,
Katie Copeland
817-789-8498

From: Katie Copeland <quinnandpoppy@gmail.com>
Date: Thursday, October 2, 2025 at 9:07 PM
To: Dayna Boor <dayna@dallasmoldconsultants.com>
Subject: Re: Mold Assessment and Protocol

Yes, but I will try again.

Sincerely,
Katie Copeland
817-789-8498

From: Dayna Boor <dayna@dallasmoldconsultants.com>
Date: Thursday, October 2, 2025 at 6:03 PM
To: Katie Copeland <quinnandpoppy@gmail.com>
Subject: RE: Mold Assessment and Protocol

Katie,

I can only release reports to the client who hired me. In this case, the property management company. Have you asked them for it?

Dayna

Sent from my T-Mobile 5G Device

----- Original message -----

From: Katie Copeland <quinnandpoppy@gmail.com>
Date: 10/2/25 12:58 PM (GMT-06:00)
To: office@dallasmoldconsultants.com
Subject: Mold Assessment and Protocol

Hello,

I am the tenant at at 220 E. Broadway #2145, Fort Worth, TX 76104.

May I please have a copy of the mold assessment report, lab results, and protocol completed in early September? I am especially curious about the findings of the lab tests on my belongings.

Sincerely,
Katie Copeland
817-789-8498

--

Dayna Boor
Dallas Mold Consultants
www.dallasmoldconsultants.com
972-945-MOLD office
214-606-1330 cell

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24

Filed 05/13/26

Page 58 of 105



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

Air Exam Chain of Custody
Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Company name		Dallas Mold Consultants				moldlab					
Address		8080 N. Central Expy Ste 1700		City	Dallas	State	TX	ZIP	75206	FM-17 External 10 Line Chain of Custody Form	
Project name		Weinstein- 090425				Submitted By:		Dayna Boor			
Project address		220 E Broadway Ave #2145, Ft. Worth TX				ZIP	76104		Cell phone		214-606-1330
Project#(optional)		Turnaround Time				Email address:		dayna@dallasmoldconsultants.com			
Sample Date		09/04/2025		3HR	6HR	24HR	48HR	3DAY	5DAY	CC:	
				☐	☐	☒	☐	☐	☐	CC:	
Test Codes		MOLD				ASBESTOS					
		Air Samples				Surface Samples					
		1. Spore Trap: mold only 2. Spore Trap: mold & other particle				3. Tape/Swab/Bulk: mold only ratings 4. Tape/Swab/Bulk: mold & other particle ratings				7. PLM 8. PLM Point Count	
Sample # or ID	Sample Name, Location or Description	Temp	R.H.%	Test code	Time on (applicable to air samples only)	Time off (applicable to air samples only)	Total Vol. (applicable to air samples only)	Sample Type (Bulk, Tape, Swab, Allergens, etc.)	No. of Containers		
1. 090425-01	Guest Bedroom Tape Lift	76	63	3				tape	1		
2. 090425-02	HVAC Closet Drivall Tape Lift	76	63	3				tape	1		
3. 00010444	HVAC Closet Hallway	76	63	1	11:39am	11:44am	75L	an	1		
4. 00010785	Guest Bedroom	76	63	1	11:45am	11:50am	75L	an	1		
5. 00010449	Living Room	76	63	1	11:52am	11:57am	75L	an	1		
6. 00010704	Master Bedroom	76	63	1	11:58am	12:03pm	75L	an	1		
7. 00010650	Outside Baseline	92	43	1	12:05pm	12:10pm	75L	an	1		
8.											
9.											
10.											
Payment options		☐ Invoice to account ☒ Process credit card on file ☐ enclosed check#		Released by (your signature)		By signing this document, you certify that these samples were not tampered with while under your care and accept the Moldlab, Ltd Terms of Service, available at moldlab.com/terms.		Time: 1:15pm Date: 09/04/2025		Received Date Stamp: RECEIVED SEP 04 2025 BY: [Signature]	
Field Notes:											
Special Instructions:											
Tracking #:											
Lab Job #		25-111919 25-111920									
Rev. 7, Issue Date: 3/24/2022		2501 Mayes Road, Ste. # 110 Carrollton, TX 75006 info@moldlab.com 1-800-416-6653									

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 9/4/2025 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

Page 1 | 1

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:

Kristina Rucker, Lab Director



moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

This report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ



Location to Reference Comparison

Identification	HVAC Closet Hallway		Guest Bedroom		Living Room		Master Bedroom		Compares	Outside Baseline	
Sample Number	00010444		00010785		00010449		00010704			00010650	
Volume (L)	75		75		75		75			75	
	Raw	s/m³	Raw	s/m³	Raw	s/m³	Raw	s/m³		Raw	s/m³
Alternaria	-	-	-	-	1	43	1	43	☞	7	300
Ascospores, non-specified	1	43	1	43	-	-	-	-	☞	7	300
Aspergillus/Penicillium-like	71	3,000	12	510	2	85	5	210	☞	30	1,300
Basidiospores, non-specified	-	-	-	-	1	43	-	-	☞	12	510
Bipolaris/Dreschslera/Helminthosporium/Exserohilum	-	-	1	43	-	-	-	-	☞	-	-
Cercospora	-	-	-	-	-	-	1	43	☞	4	170
Chaetomium	15	640	7	300	-	-	5	210	☞	-	-
Cladosporium	3	130	7	300	7	300	67	2,900	☞	>100	>8,500
Curvularia	-	-	-	-	-	-	-	-	☞	2	85
Fusarium	-	-	-	-	-	-	-	-	☞	4	170
Hyphal Fragments	7	300	2	85	1	43	16	680	☞	6	260
Myxomycetes/Periconia/Smut/Rust	-	-	-	-	1	43	-	-	☞	2	85
Nigrospora	1	43	-	-	1	43	-	-	☞	4	170
Pithomyces	-	-	-	-	-	-	-	-	☞	2	85
Yeast-like fungi	-	-	-	-	-	-	-	-	☞	2	85
Total Fungal Structures	98	4,200	30	1,300	14	600	95	4,100		>180	>12,000
Non-Microbial Debris Field Rating	Light		Light		Light		Light			Light	

Submitted By: Dayna Boor | Submittal Date: 9/4/2025 1:13:00 PM | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Analyst: Steven Reese

If a structure is not listed, or listed with a (-), it was not observed in the sample(s) submitted. Debris rating estimates the total non-fungal particle load on the sample. Ratings of None Detected, Trace (>0 to 5%), Light (>5% to 25%), Moderate (>25% to 75%), Heavy (>75% to 90%), and Occluded (>90%) are used. A rating of Light or higher may have a higher number of structures present than indicated. The higher the rating, the greater the negative bias. A rating of Occluded makes quantitative results impossible; instead, any structures detected will be marked as Detected.

Concentrations are rounded to two significant figures. The 'total' field may not add up to sum of individual types due to this rounding. The maximum raw count is 100 due to stopping rules. The calculated concentration for a 100 raw count sample will vary depending on the traverse in which the stopping rule was applied. Sample volumes are provided by the customer and impact the validity of structure concentrations. Yellow highlighted concentrations are higher than the reference. Samples received and analyzed by Moldlab, Ltd.

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Report

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



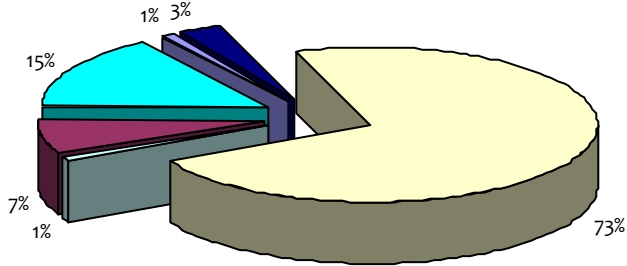
**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

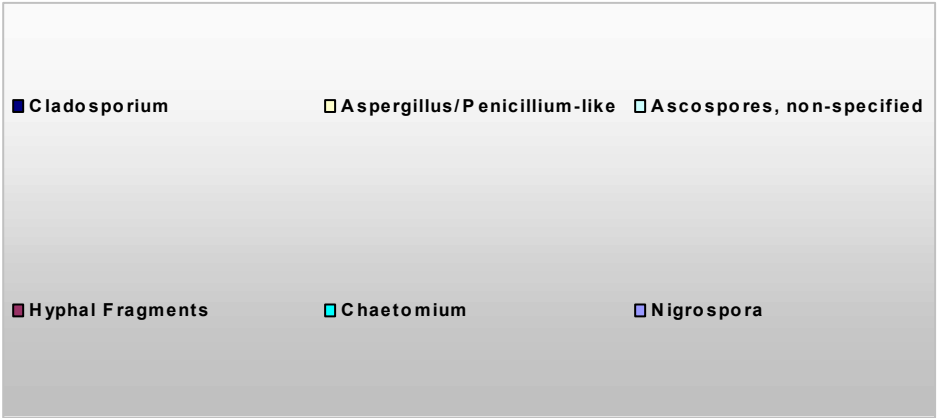
Sample No: 00010444	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:39
Location: HVAC Closet Hallway	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:44

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Ascospores, non-specified	1	43	43	Aspergillus/Penicillium-like	71	3,000	43
Chaetomium	15	640	43	Cladosporium	3	130	43
Nigrospora	1	43	43				
Hyphal Fragments	7	300	43				

Total Fungal Structures/m³*: 4,200



Relative Mold Type Concentration



Tech Notes:



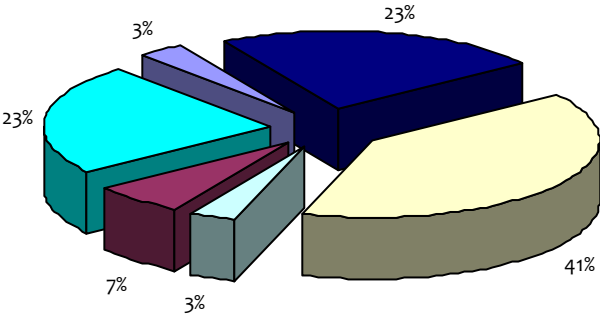
Sample No: 00010785	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:45
Location: Guest Bedroom	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:50

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Ascospores, non-specified	1	43	43	Aspergillus/Penicillium-like	12	510	43
Bipolaris/Dreschlera/Helminthosporium/	1	43	43	Chaetomium	7	300	43
Cladosporium	7	300	43				
Hyphal Fragments	2	85	43				

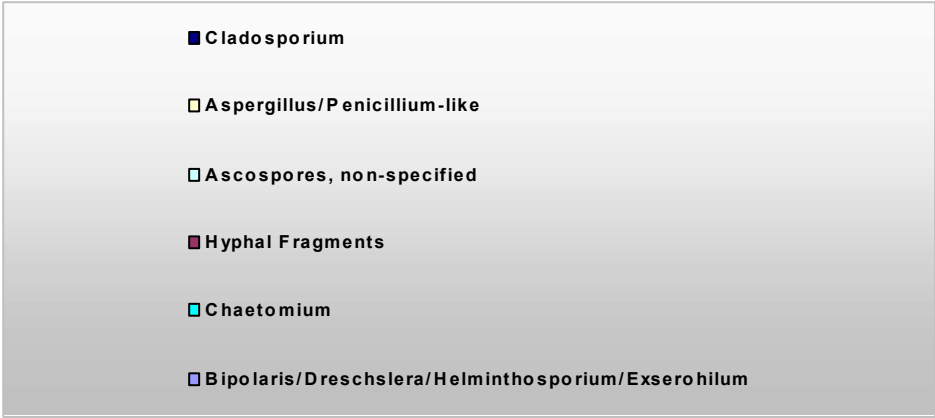
Total Fungal Structures/m³*: 1,300



Non-Microbial Debris Field Rating



Relative Mold Type Concentration

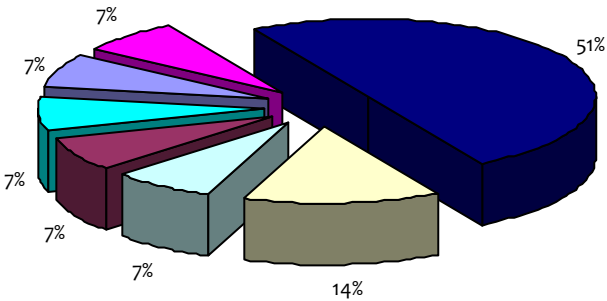


Tech Notes:

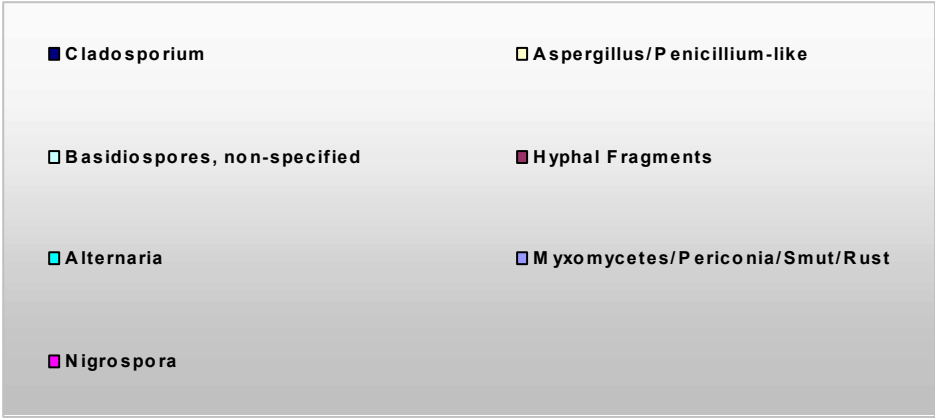
Sample No: 00010449	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:52
Location: Living Room	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:57

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Alternaria	1	43	43	Aspergillus/Penicillium-like	2	85	43
Basidiospores, non-specified	1	43	43	Cladosporium	7	300	43
Myxomycetes/Periconia/Smut/Rust	1	43	43	Nigrospora	1	43	43
Hyphal Fragments	1	43	43				

Total Fungal Structures/m³*: 600



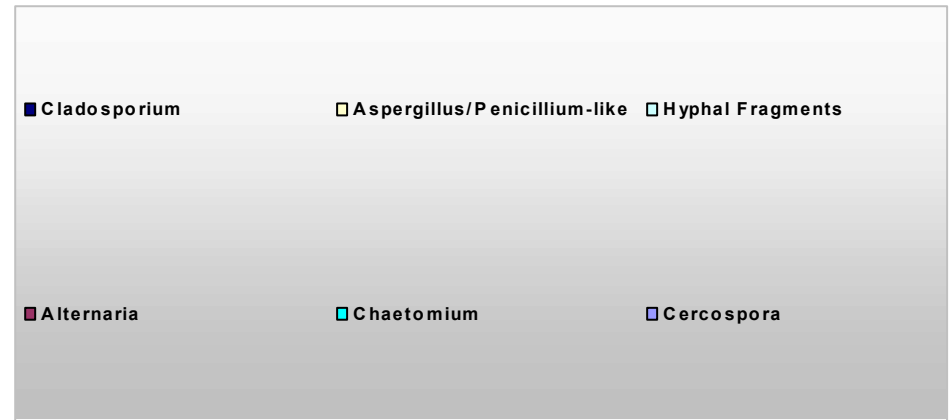
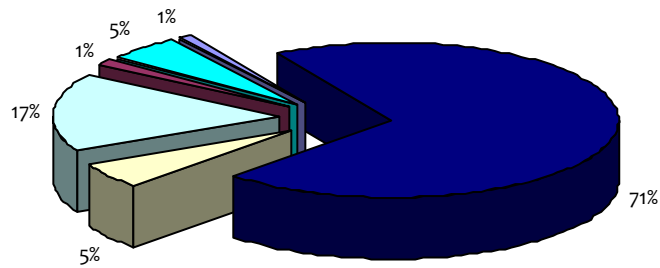
Relative Mold Type Concentration



Tech Notes:

Sample No: 00010704	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:58
Location: Master Bedroom	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 12:03

Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Alternaria	1	43	43	Aspergillus/Penicillium-like	5	210	43
Cercospora	1	43	43	Chaetomium	5	210	43
Cladosporium	67	2,900	43				
Hyphal Fragments	16	680	43				
Total Fungal Structures/m ³ *:		4,100					



Tech Notes:

Sample No: 00010650

Sample Type: Allergenco D

Analysis Date: 9/5/2025

Sample Start Time: 12:05

Location: Outside Baseline

Volume (L): 75

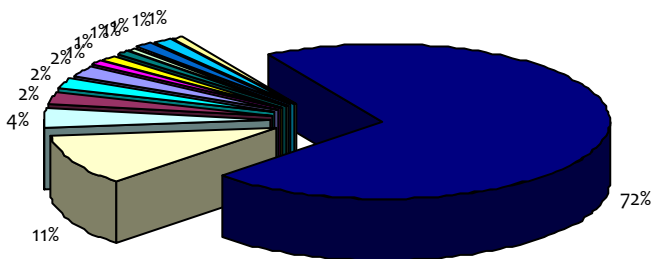
% Sample Analyzed**: 31.25%

Sample Stop Time: 12:10

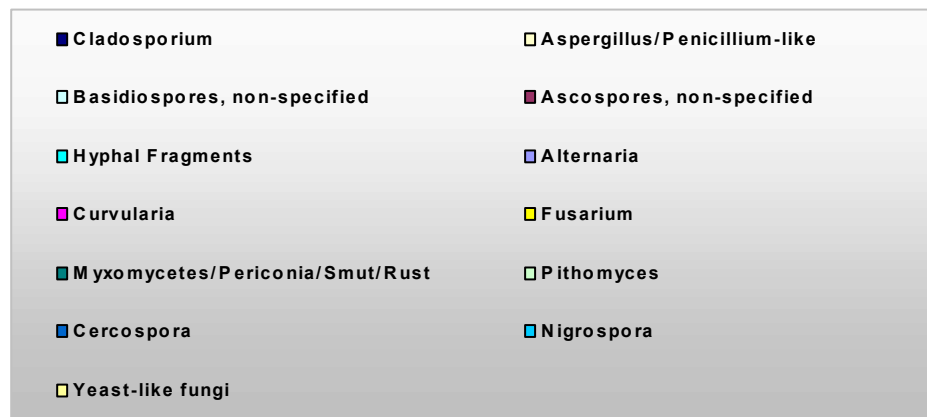
Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Alternaria	7	300	43	Ascospores, non-specified	7	300	43
Aspergillus/Penicillium-like	30	1,300	43	Basidiospores, non-specified	12	510	43
Cercospora	4	170	43	Cladosporium	>100	>8,500	85
Curvularia	2	85	43	Fusarium	4	170	43
Myxomycetes/Periconia/Smut/Rust	2	85	43	Nigrospora	4	170	43
Pithomyces	2	85	43	Yeast-like fungi	2	85	43
Hyphal Fragments	6	260	43				

Total Fungal Structures/m³*: >12,000

Non-Microbial Debris Field Rating



Relative Mold Type Concentration



Tech Notes:

Page 5 | 5

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

If a structure is not listed, it was not observed in the sample(s) submitted. Debris rating estimates the total non-fungal particle load on the sample. Ratings of Non Detected, Trace (>0 to 5%), Light (>5% to 25%), Moderate (>25% to 75%), Heavy (>75% to 90%), and Occluded (>90%) are used. A rating of Light or higher may have a higher number of structures present than indicated. The higher the rating, the greater the negative bias. A rating of Occluded makes quantitative results impossible: any structures detected will be marked as Detected. Concentrations are rounded to two significant figures. The 'total' field may not add up to the sum of individual types due to this rounding. The maximum raw count is 100 due to stopping rules. The calculated concentration for a 100 raw count sample will vary depending on the traverse in which the stopping rule was applied. Sample volumes are provided by the customer and impact the validity of structure concentrations.

* s/m³ is structures/m³. A structure is the analyte of interest chosen by the client. **Refers to percent of sample in which structures are enumerated. If you have any questions regarding count rules, please call the lab. Samples received and analyzed by Moldlab, Ltd.

LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782.

2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

flashback

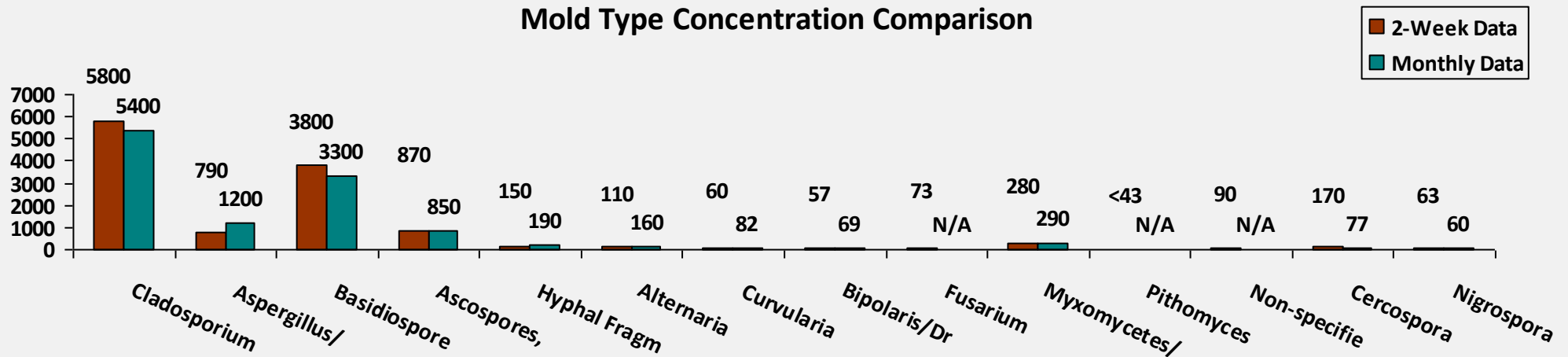
2-Week Average Outdoor Data

Identification	Concentration (s/m ³)
Alternaria	110
Ascospores, non-specified	870
Aspergillus/Penicillium-like	790
Basidiospores, non-specified	3,800
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	57
Cercospora	170
Cladosporium	5,800
Curvularia	60
Fusarium	73
Hyphal Fragments	150
Myxomycetes/Periconia/Smut/Rust	280
Nigrospora	63
Non-specified spore	90
Pithomyces	<43

September Historical Average Outdoor Data

Identification	Concentration (s/m ³)
Alternaria	160
Ascospores, non-specified	850
Aspergillus/Penicillium-like	1,200
Basidiospores, non-specified	3,300
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	69
Cercospora	77
Cladosporium	5,400
Curvularia	82
Hyphal Fragments	190
Myxomycetes/Periconia/Smut/Rust	290
Nigrospora	60

Mold Type Concentration Comparison



Report Date: 9/5/2025 | Sample Date: 9/4/2025

2-Week average Outdoor Data is from 8/21/2025 - 9/4/2025. September Historical Average Outdoor Data is the mean Calculated Concentration for outdoor samples from selected clients from selected zip codes considered by MoldLab to be part of the DFW area. Contact the lab for a complete list of zip codes. Data may not be applicable to areas outside of these zip codes. Outdoor data begins in 2015 and ends in 2024, and is exclusive to the month listed. This report is not intended as a replacement for an outdoor reference sample. Mold types that were not listed in the 2-Week Average Data were not detected, or were detected at a level <22 spores/m³. Mold types that were not listed in the Historical Average Outdoor Data were not detected, or were detected at a level <43 spores/m³. No correction for statistical significance or uncertainty of measurement has been applied. Mold Types listed as "N/A" in the Mold Type Concentration Comparison chart were not detected at a statistically significant level. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein.LAB0137 by the Texas Dept. of Licensing and Regulation.

moldlab

2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

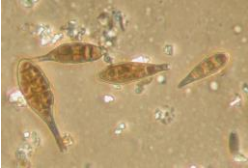
Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus. The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

- Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.
- Contaminant- something that is present without injuring or benefiting the host; does not cause infection.
- Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition	Images
Alternaria (all-tur-nair'ee-uh) Classification: Common Allergen / Contaminant / Opportunistic Pathogen (rarely) Possible Health Effect: It is an important allergen and common agent of hay fever, asthma, and other allergy related symptoms, including sinusitis. Macroscopic Morphology: The mold can appear gray / white at first than become greenish / black or brown with a lighter border over time. Environment: Soil, Plants, Commonly found indoors on food and textiles.	 
Ascospores, non-specified (ass-co'-spores) Classification: These are a very large category of spores. Possible Health Effect: Because so few of the Ascomycetes will grow in the laboratory setting, very little is known about their health effects on humans. Macroscopic Morphology: Most will appear as specks or spots or bumps on leaves and wood. Environment: Leaves, Wood. Also, most are plant saprophytes playing the role of "recyclers". Spores are produced in sac-like structures called asci.	 

Definition

Images

Aspergillus/Penicillium-like (as-per-jill-us) / (pen-uh-sill'ee-um)

Classification: Allergen / Contaminant / Opportunistic Pathogen

Possible Health Effect: Aspergillus is common on tape lift samples and air samples, but its spores are indistinguishable from Penicillium spores in most cases. There are a few exceptions but the species ID must be made from culture, and is still a difficult job. Health effects vary by species, but many are listed as allergens. Some species can produce toxins that may have significant health effects in humans. Aspergillus is listed as one of the most infectious types of mold, but infections are not common in normal healthy immune systems. However, if you are immune suppressed or compromised this should be discussed with your physician.

Macroscopic Morphology: Aspergillus can appear in a wide range of colors from white to purple, yellow to green, see images next to text.

Environment: Commonly found in the environment around the world.



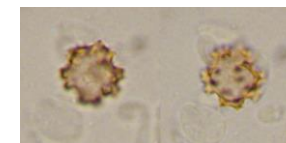
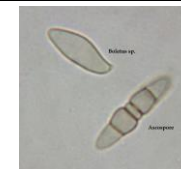
Basidiospores, non-specified (bah-sid-ee-oh'-spores)

Classification: Allergen / Contaminant. Another large general class of spores formed on a structure called a basidium, mushrooms belong to this group.

Possible Health Effect: Allergen and possible poisoning if certain species are ingested.

Macroscopic Morphology: Mushrooms, puffballs and bracket fungi.

Environment: This category of spores is found in the outdoor air make up. This is a common cause of Wood Rot. High concentrations in an indoor air sample might be indicative of water damage or too high humidity. Often abundant at night or pre-dawn hours when there is high humidity.



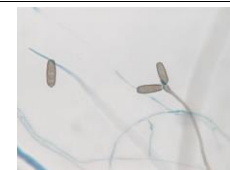
Bipolaris/Dreschlera/Helminthosporium/Exserohilum types (bye-pole-air-us)(dresh-lair'-uh) /

Classification: Contaminant / Opportunistic pathogen

Possible Health Effect: Allergenic and the most common agent for allergic fungal sinusitis. Various but uncommon infections of the eye, nose, lungs and skin in debilitated hosts.

Macroscopic Morphology: The mold will appear brownish / black with a black matted middle and a raised lighter color periphery.

Environment: The fungus is a saprophyte and can be found in soil.



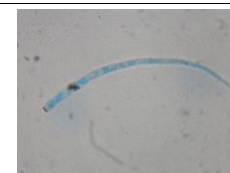
Cercospora group (sir-ko-spore-ra)

Classification: Contaminant / Plant Pathogen

Possible Health Effect: None found at this time

Macroscopic Morphology: reddish-brown to gray-black/wooly

Environment: Plants-cause of leaf spot on sugar beets



Definition

Images

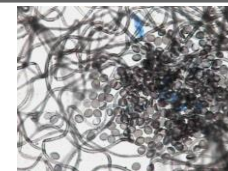
Chaetomium (kay- toe-me-um)

Classification: Contaminant / some report allergen

Possible Health Effect: Rarely involved in systemic and cutaneous disease and sometimes reported to be allergenic. Some species can produce toxins, and there is some research interest on whether these toxins can cause cancer.

Macroscopic Morphology: The surface of the mold is cottony, spreading and becomes tan or gray with age. With close examination the surface sometimes will appear to have little black specks like pepper.

Environment: Chaetomium is one of the few Ascomycetes that will grow and produce spores indoors. It prefers to grow on cellulose for example paper and wood. Primary IAQ importance is that it will grow in the same conditions as Stachybotrys (wet cellulose) and sheetrock paper. Colonies of Chaetomium and Stachybotrys will be growing on top of one another. Also, found in soil and hay.



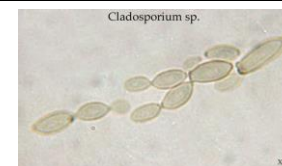
Cladosporium (clad-oh-spore-ee-um)

Classification: Common Allergen/ Contaminant

Possible Health Effect: Rarely pathogenic, it is a common agent of hay fever and asthma and other allergy related symptoms.

Macroscopic Morphology: Surface of the mold is greenish brown or can appear black in color with age and have heap or folded appearance.

Environment: Cladosporium can be found in most air samples most of the time. It is very common. Cladosporium is one of the types of mold found growing on HVAC vent covers and grills. It can grow on leaves, textiles, wood, paper, and decaying vegetation.



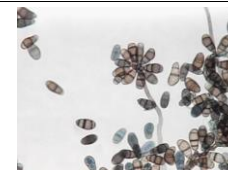
Curvularia (curve-you-lair'-ee-uh)

Classification: Contaminant / Opportunistic Pathogen

Possible Health Effect: Some sources site it as an allergen. Rare infections of the cornea, nail and sinuses primarily in Immunocompromised individuals.

Macroscopic Morphology: The mold appears as olive green to brown or black with a pink wooly surface.

Environment: The mold is common in the air and in the soil as a saprophyte and in textiles and decaying vegetation.



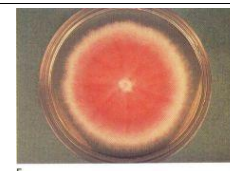
Fusarium (few-sarh-ee-um)

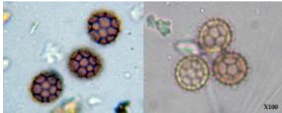
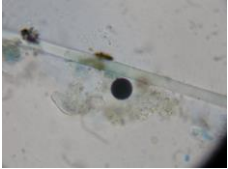
Classification: Contaminant / Opportunistic pathogen

Possible Health Effect: Associated with eye infections and occasionally skin and nail. Produces a variety of toxins mainly important when ingested particularly through contaminated grain products. Reports of infections in burn victims and compromised hosts.

Macroscopic Morphology: It grows quickly and is at first white and cottony but will turn pinkish with age.

Environment: Found on fruit and grains and common in soil. Indoors it can sometimes contaminate humidifiers.



Definition	Images	
Hyphal Fragments (hy-full) Classification: N/A Possible Health Effect: N/A Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone. Environment: N/A	 	
Myxomycete / Periconia / Smut (mix-oh'-my-seat) / (pare-i-cone-ee-uh) / (smut) Classification: Generally a plant pathogen Possible Health Effect: Generally plant pathogens. Some allergenic properties have been reported but generally pose no health concerns to humans. Macroscopic Morphology: N/A Environment: This group is associated with living and decaying plants as well as decaying wood. Sometimes can be found indoors. <i>*myxomycete is technically not a mold but we have included it in this group due to morphological similarities.</i>		
Nigrospora (nigh-grow-spore-uh) Classification: Saprophyte, not known to be pathogenic. Possible Health Effect: Rarely Reported Macroscopic Morphology: Woolly, white then gray with age. Environment: Worldwide in soil, parasitic and saprophytic on plants.	 	
Pithomyces (pith-oh-my-cees) Classification: Contaminant Possible Health Effect: No reports of allergies or infections. Macroscopic Morphology: Light to dark brown and cottony, sometimes showing tufts of distinct fluff in the middle of colony. Environment: Worldwide, soil, plant materials, saprophyte, rarely found indoor, but can grow on paper.	 	
Yeast-like fungi Classification: This is a category we assign to spores that have morphological characteristics similar to yeast Examples of yeast like mold are Acremonium and Exophiala	 	

Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

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PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24 Filed 05/19/26

Page 70 of 105



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

Air Exam FAQ

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

How do I know if the air sample results are normal?

The general guideline is that the concentration and types of mold in the inside sample should be similar to or lower than the concentration in the Outside sample. Currently there are no dose response relationship statistics for allowable or safe levels of aeroallergens.

What is the Air Calculated Concentration?

The Calculated Concentration is a measure of the concentration of mold spores in the air, and is listed as spores per cubic meter of air. It is useful for comparing samples and understanding how many spores are in a given section of air. This is calculated based on the air flow rate of the pump, the time the pump was run for, the proportion of the sample enumerated, and the raw count. It is calculated as $((100/\text{Proportion of Sample Analyzed})/(\text{Air Flow Rate} * \text{Pump Run Time})) * (\text{Raw Count})$. This number is then rounded to two significant figures. The calculated concentration is useful for comparing samples with different volumes, sample types, and counting methods. It is also useful for understanding how many spores there are in a given section of air. If you believe that the air flow rate and pump run time may be incorrect for some or all of your samples, please contact the lab and we can correct this for you.

What is the Raw Count on the report?

The 'raw' count is how many spores the technician actually viewed on your sample while looking through the microscope. We use this number to generate the calculated concentration. Moldlab stops counting spores at 100 and reports the raw count as '>100'.

Can you tell me a little more about mold air samples?

This type of sample is a non-cultured air sample, which means the lab did not grow the samples in a Petri dish, and is commonly referred to as a "snapshot" of the air at the exact time of sampling. The test works by pumping a controlled volume of air through a collection container called a spore trap. The spore trap has a sticky substance on its surface which captures any particles from the air, including mold spores. Test results account for both live and dead spores.

What is the 'debris field rating'?

The 'debris field rating' is a visual estimate made by the technician of how much non-fungal debris there is on the sample. The rating includes all non fungal particulate (fibers, debris, pollen, insects, skin, etc.). The scale includes ratings of 'None Detected', 'Trace', 'Minor', 'Moderate', 'Heavy', and 'Occluded'. None Detected indicates no sample was detected on the sample (possibly due to a bad sample). Trace indicates trace amounts of debris are present. Minor indicates small amounts of debris are present. Moderate indicates an average amount of debris is present. Heavy indicates a high concentration of debris articulate. Lastly, Occluded indicates the amount of particulate on the sample is so concentrated that the technician could not see through it to count and identify spores accurately. The higher the debris rating, the greater the negative bias of results.

What is a 'significant figure'?

Significant figures are used in science to give a better representation of the accuracy of a number. All non-zero digits in a number are significant. Additionally, any digits to the right of a decimal are significant, whether they are zero or not, and all digits in between two non-zero digits are also significant. Significant figures give an understanding of what decimal place a number is accurate to. For example, if 43 is given as 43.0, it is assumed that the "true" value is somewhere between 42.95 and 43.049. If it is given as 43.00, it is assumed the "true" value is somewhere between 42.995 and 43.0049, which is much more precise. Similarly, if 431 is shown as 431, it is assumed that the analysis is accurate to between 430.5 and 431.49, while if it is given as 430, it is only assumed to be accurate to between 425 and 434.9. In this report, all calculated numbers such as the minimum reporting limit and the calculated concentration are rounded to two significant figures. All numbers that were not calculated are given without rounding.

What is the 'minimum reporting limit'?

A minimum reporting limit is exactly what it sounds like- the minimum number that must be reported for the calculated concentration if any spores are detected. This is calculated as $(100/\text{Proportion of Sample Analyzed})/(\text{Air Flow Rate} * \text{Pump Run Time})$. This number is essentially the amount a single spore increases the calculated concentration by. All spore types that are not listed as having a raw count of 1 or greater have a calculated concentration of less than the minimum reporting limit. It cannot be said based upon a raw count of zero that the true concentration of that spore type is 0, however, because the testing procedure is not sufficiently precise. For this reason, the minimum reporting limit gives a useful measure of the minimum detectable concentration of mold types. Bear in mind that any negative bias due to the debris field rating IS NOT accounted for in this minimum reporting limit.

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

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LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.

moldlab

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Toll Free (866) 416-6653
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Direct Exam Chain of Custody

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Company name		Dallas Mold Consultants		City		Dallas	State	TX	ZIP	75206
Address		8080 N. Central Expy Ste 1700		City		Dallas	State	TX	ZIP	75206
Project name		Weinstein - 090225		Submitted By:		Dayna Boor		Cell phone		214-606-1330
Project address		220 E Broadway Ave. #2145, Ft Worth, TX		ZIP		76104		Email address:		dayna@dallasmoldconsultants.com
Project#(optional)				Turnaround Time				CC:		
Sample Date		10/17/2025		3HR		6HR	24HR	48HR	3DAY	5DAY
Test Codes		MOLD		ASBESTOS						
Sample # or ID		Sample Name, Location or Description		Temp	R.H.%	Test code	Time on	Time off	Total Vol.	Sample Type
1. 101725-01		Entry Drywall		79	58	3				Swab
2.										
3.										
4.										
5.										
6.										
7.										
8.										
9.										
10.										
Payment options		☐ Invoice to account ☒ Process credit card on file ☐ enclosed check#		Released by (your signature)		By signing this document, you certify that these samples were not tampered with while under your care and accept the Moldlab, Ltd Terms of Service, available at Moldlab.com/Terms.		Time: 12:30pm		Date: 10/17/2025
Field Notes:				x Dayna Boor						
Special Instructions:										
Tracking #:										
Barcode										
Rev. 7, Issue Date: 3/24/2022		2501 Mayes Road, Ste. # 110 Carrollton, TX 75006 info@moldlab.com 1-866-416-6653								

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 10/17/2025 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:

Kristina Rucker, Lab Director



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PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Report

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Sample No:	101725-01	Analysis Date:	10/18/2025	Sample Type:	Swab
Location:	Entry Drywall				

Identification	Rating
Alternaria	Minor
Ascospores, non-specified	Minor
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	Minor
Curvularia	Minor
Myxomycetes/Periconia/Smut/Rust	Minor
Nigrospora	Minor
Non-specified spore	Minor
Pithomyces	Minor
Hyphal Fragments	Minor

Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

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PROJECT INFORMATION
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220 E Broadway Ave. #2145
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Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24 Filed 05/18/26

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Direct Exam FAQ

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

What does the rating system mean?

Mold is a normal part of our environment, and mold spores can settle out of the air into accumulated dust. This can cause 'minor' ratings of several different types of mold to appear even in a typical house dust sample, and these may not necessarily be a cause for concern. However, a 'heavy' rating may indicate that the sample was taken from a source of mold. Below are the exact criteria for each rating:

- 'No mold detected' means that the sample submitted did **not** contain a detectable level of mold.
- 'Minor' means that the technician observed 1 or fewer structures of mold per field of view under the microscope.
- 'Moderate' means 1 to 3 structures of mold were detected per field of view.
- 'Heavy' means greater than 3 structures were detected per field of view.

Always take into consideration the sample as a whole when interpreting results. It is important to also consider the types of mold detected and the location the sample was taken.

How do I learn more about the types of mold listed on my report?

Each report comes with its own mold dictionary, called the Glossary. Simply scroll to the Glossary section of your report and each mold type is listed alphabetically. There you'll find helpful information about each mold type.

Do I have the Black Mold?

Usually when a customer asks this question he/she is referring to Stachybotrys. Although Stachybotrys is black in color, so are many other types of mold. Do not discount the importance of other types of mold listed on your report simply because you do not see the word Stachybotrys or Black mold. For more about 'black mold', visit our website at: <https://www.moldlab.com/black-mold>

How do I get rid of it?

Many molds are allergens and some may be toxigenic. Disturbing the mold with cleaning methods increases the chances of exposure to the particulate. Mold clean up and disposal methods vary greatly from company to company. A good rule of thumb is that if the contaminated area is small and the material is non porous, such as metal, it can be cleaned by traditional methods, taking care to use personal protective equipment. Porous materials on the other hand, such as wood, textiles, or sheetrock, are difficult to clean because of the microscopic holes in the material. The 'root-like' structures of the mold called hyphae/mycelia can grow down into the holes and make it hard to clean effectively. The surface will appear clean but as soon as conditions are favorable the mold can start to grow again. Here is a link to the EPA mold help guide: <https://www.epa.gov/mold/brief-guide-mold-moisture-and-your-home>

Can we still live here?

There are no established 'safe' levels of mold, just as there are no established 'unsafe' levels of mold, and individuals have different resistances and reactions to mold. Persons that are most likely to be adversely affected by mold exposure are: children, elderly, immunocompromised, and persons with respiratory disorders. If you suspect you are experiencing adverse health effects as a result of mold, please consult a medical professional. Please note that Moldlab, Ltd. is not a medical, or clinical laboratory and we do not offer medical consulting or advice.

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

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moldlab

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Website - www.moldlab.com

This test report contains the following sections: Cover, Report, FAQ, and Glossary

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus. The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

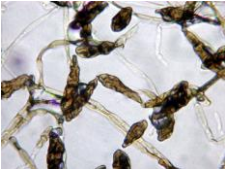
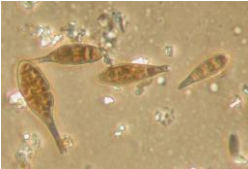
Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition	Images
Alternaria (all-tur-nair'ee-uh) Classification: Common Allergen / Contaminant / Opportunistic Pathogen (rarely) Possible Health Effect: It is an important allergen and common agent of hay fever, asthma, and other allergy related symptoms, including sinusitis. Macroscopic Morphology: The mold can appear gray / white at first than become greenish / black or brown with a lighter border over time. Environment: Soil, Plants, Commonly found indoors on food and textiles.	 

Definition

Images

Ascospores, non-specified (ass-co'-spores)

Classification: These are a very large category of spores.

Possible Health Effect: Because so few of the Ascomycetes will grow in the laboratory setting, very little is known about their health effects on humans.

Macroscopic Morphology: Most will appear as specks or spots or bumps on leaves and wood.

Environment: Leaves, Wood. Also, most are plant saprophytes playing the role of "recyclers". Spores are produced in sac-like structures called asci.



Bipolaris/Dreschlera/Helminthosporium/Exserohilum types (bye-pole-air-us)(dresh-lair'-uh) /

Classification: Contaminant / Opportunistic pathogen

Possible Health Effect: Allergenic and the most common agent for allergic fungal sinusitis. Various but uncommon infections of the eye, nose, lungs and skin in debilitated hosts.

Macroscopic Morphology: The mold will appear brownish / black with a black matted middle and a raised lighter color periphery.

Environment: The fungus is a saprophyte and can be found in soil.



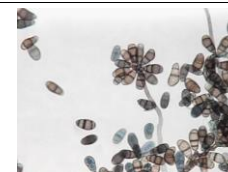
Curvularia (curve-you-lair'-ee-uh)

Classification: Contaminant / Opportunistic Pathogen

Possible Health Effect: Some sources site it as an allergen. Rare infections of the cornea, nail and sinuses primarily in Immunocompromised individuals.

Macroscopic Morphology: The mold appears as olive green to brown or black with a pink wooly surface.

Environment: The mold is common in the air and in the soil as a saprophyte and in textiles and decaying vegetation.



Hyphal Fragments (hy-full)

Classification: N/A

Possible Health Effect: N/A

Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone.

Environment: N/A



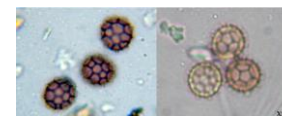
Myxomycete / Periconia / Smut (mix-oh'-my-seat) / (pare-i-cone-ee-uh) / (smut)

Classification: Generally a plant pathogen

Possible Health Effect: Generally plant pathogens. Some allergenic properties have been reported but generally pose no health concerns to humans.

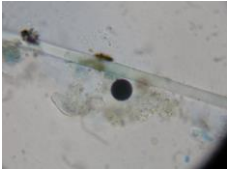
Macroscopic Morphology: N/A

Environment: This group is associated with living and decaying plants as well as decaying wood. Sometimes can be found indoors.



**myxomycete is technically not a mold but we have included it in this group due to morphological similarities.*

Tech Notes:

Definition	Images	
<u>Nigrospora</u> (nigh-grow-spore-uh) Classification: Saprophyte, not known to be pathogenic. Possible Health Effect: Rarely Reported Macroscopic Morphology: Woolly, white then gray with age. Environment: Worldwide in soil, parasitic and saprophytic on plants.	 	
<u>Non-specified spore</u> The spore is NOT Stachybotrys, and could not be identified as any of the other mold types this lab identifies. It may be an unusual mold type that is not identifiable microscopically, or the spore may be damaged. However, the spore was definitively fungal. Classification: N/A Macroscopic Morphology: N/A Environment: N/A		
<u>Pithomyces</u> (pith-oh-my-ceeds) Classification: Contaminant Possible Health Effect: No reports of allergies or infections. Macroscopic Morphology: Light to dark brown and cottony, sometimes showing tufts of distinct fluff in the middle of colony. Environment: Worldwide, soil, plant materials, saprophyte, rarely found indoor, but can grow on paper.	 	

Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

Results apply only to samples tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd. LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.



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MOLD REMEDIATION PROTOCOL

**Project No: Weinstein-090225
Inspection Date: 09/02/2025
Remediation Protocol Date:
09/08/2025**

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Section 1.0 Project Background

1.1 Site Description

Building Type: Residential, Multi-Family, Apartment, 1st Floor, Slab Foundation

Age: 2019

Scope: Demolition, Content Cleaning, Environmental Cleaning, HVAC System and Duct Cleaning

1.2 Initial Observations and Findings

Clients requested a mold inspection and remediation protocol write-up after a water loss related to the HVAC condensation drain line caused water damage to the mechanical closet and guest bedroom of this unit.

At the time of inspection the humidity is ~63% Rh and there is visible growth on the inside of the utility closet, behind baseboard in the hallway, and behind baseboard in the guest bedroom behind the utility closet.

The laminate flooring surrounding the area has elevated moisture readings.

Remediation workers put up some containment. There is no equipment on site and no negative pressure on the containment.

Air samples were collected in the mechanical closet hallway, guest bedroom, living room, and master bedroom for comparison with an outdoor air sample.

Tape lift samples were collected from visible growth on the drywall in the hallway and in the guest bedroom for lab analysis.

FINDINGS and RECOMMENDATIONS:

The indoor air samples show contamination with *Aspergillus* and *Chaetomium* mold spores throughout the apartment. *Chaetomium* mold is associated with long-term water damage on building materials.

Due to elevated molds in the air samples, all contents in the apartment should be considered contaminated.

See lab results on next page.

See pictures on pages 12-14.

Recommending mold remediation, content cleaning, environmental cleaning, and HVAC cleaning as outlined in this protocol on **pages 7-11**.

STATE NOTIFICATION

The material to be removed and cleaned is greater than 25 square feet which requires state notification and a 5-day waiting period before remediation can begin. The total of all material removal specified in this protocol is based on areas of visible mold growth, elevated moisture levels, and visible water damaged material observed during the mold inspection performed on 09/02/2025.

Section 1.3

Initial Microbial Sampling Results

Air samples collected using Zefon Bio-Pump with Air-O-Cell cassette at a flow rate of 15 LPM.

Baseline outdoor sample collected and indoor air samples collected in the mechanical closet hallway, guest bedroom, living room, and master bedroom.

Surface tape lift samples collected from visible growth in the hallway and in the guest bedroom behind the baseboards.

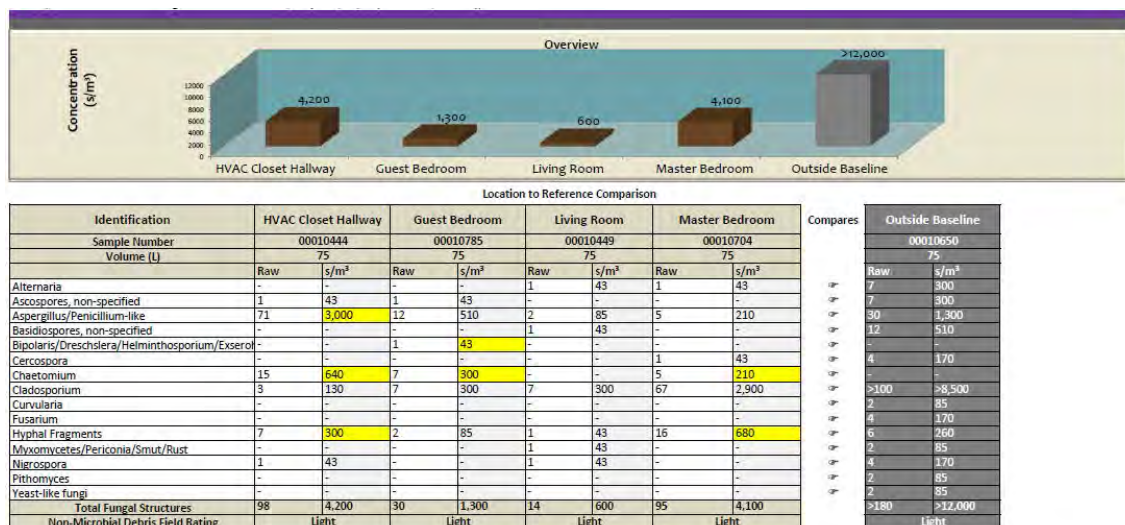
RESULTS: The indoor air samples identified elevated *Aspergillus* mold spores in the mechanical closet hallway and the presence of *Chaetomium* mold spores in the hallway, guest bedroom, and master bedroom air samples.

The tape lift sample from the drywall in the guest bedroom identified a **heavy concentration** of *Chaetomium* mold spores and a **minor concentration** of *Aspergillus* and *Cladosporium* mold spores.

The tape lift sample from the drywall in the utility closet hallway identified a **heavy concentration** of *Chaetomium* mold spores.

See Lab Snapshots below and Full Lab Reports for more information

Air Samples



Surface Tape Lift Samples

Sample No:	090425-01	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	Guest Bedroom Tape Lift				
		Identification	Rating		
		Aspergillus/Penicillium-like	Minor		
		Chaetomium			Heavy
		Cladosporium	Minor		
		Hyphal Fragments			Heavy
Sample No:	090425-02	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	HVAC Closet Drywall Tape Lift				
		Identification	Rating		
		Chaetomium			Heavy
		Hyphal Fragments			Heavy

Sample collection and analyses were performed according to Minimum Work Practices and Procedures for Mold Assessment of the Texas Mold Assessment and Remediation Rules. Microbial samples collected by Dallas Mold Consultants are submitted under chain of custody to The Moldlab, a Texas licensed lab (TDSHS license #LAB0137). If samples were collected, full lab report will be sent as a separate attachment.

Section 1.4

Reliance

This protocol is for the exclusive use of the client for the project being discussed. This protocol is not a certificate, assurance, warranty or guarantee of future conditions or performance, but is specific to the conditions present and detected on the date of the mold inspection. This protocol is valid for 60 days from the day it was written.

The Texas Department of Licensing and Regulation regulates mold remediation in the state by administering the Texas Mold Assessors and Remediators Occupations Code and Administrative Rules. Additional information regarding the Texas Mold Program and the state mold statute can be found on their homepage at www.tdlr.texas.gov/mld/mld.htm.

Anyone who believes a company or individual has violated the rules can file a complaint with TDLR. For information on this process, call 1-800-803-9202, or complete the online complaint form.

Texas Department of Licensing and Regulation
Enforcement Division
P.O. Box 12157
Austin, TX 78711
enforcement@tdlr.texas.gov
www.tdlr.texas.gov/complaints

Section 2.0

Regulations and Notices

2.1 Texas Mold Assessment and Remediation Regulations

It is critical that licensed, trained, and qualified mold remediation professionals perform the clean-up work. Mold Remediation should be performed to the standards found in IICRC S520, Standard and Reference Guide for Mold Remediation, and in accordance with the laws of the state of Texas. In accordance with the Texas Mold Assessment and Remediation Rules (Rules), 16 Tex. Admin. Code, Chapter 78, if a licensed Remediation Contractor is doing the mold remediation, a Mold Remediation Protocol is required.

According to the Texas Department of Licensing and Regulation (TDLR) Texas Mold Assessors and Remediators Administrative Rules, state notification is required if more than 25 contiguous square feet of mold contaminated material is affected in any one area. This notification requires a five (5) business day waiting period between the notification date and the remediation start date. This client is encouraged to work with a licensed Mold Remediation Contractor to ensure minimal project disruption and down time should this remediation effort exceed the state mandated limits and have to be registered.

Contaminated materials should be removed using appropriate containment and removal practices in accordance with the TMARR. Proper engineering controls must be in place to prevent the further spreading of airborne mold spores.

2.2 TAHPR - Texas Asbestos Health Protection Rules

The current Texas Asbestos Health Protection Rules require that an asbestos survey be performed by Department of State Health Services licensed persons prior to the commencement of renovation or demolition activities that could disturb asbestos-containing materials within a public building. Materials such as drywall, drywall texture and joint compound, ceiling texture/acoustical materials, flooring materials, ceiling tiles, as well as vinyl flooring products and adhesives can contain asbestos.

2.3 Lead Based Paint

Pre-renovation education requirements:

Firms that perform renovations for compensation in residential houses, apartments, and child-occupied facilities built before 1978 are required to distribute EPA's lead hazard information pamphlet "Renovate Right" before starting renovation work.

The firm must document compliance with this requirement; EPA's pre-renovation disclosure form may be used for this purpose.

Training, certification, and work practice requirements:

Firms are required to be certified, their employees must be trained in the use of lead-safe work practices (either as a certified renovator or on-the-job by a certified renovator), and lead-safe work practices that minimize occupants' exposure to lead hazards must be followed.

Examples of lead-safe work practices include:

Work-area containment to prevent dust and debris from leaving the work area.

Prohibition of certain work practices like open-flame burning and the use of power tools without HEPA exhaust control.

Thorough clean up followed by a verification procedure to minimize exposure to lead-based paint hazards.

Section 3.0 Containments and PPE

Section 3.1 Containment

Pack-out contents for cleaning. Build a single-stage containment around the affected walls in the bedroom, living room, mechanical closet, and hallway. Establish negative pressure using air scrubbers with CLEAN HEPA-rated filters. **Vent outside through a window to remove organic vapors.**

Place air scrubbers outside the containment to clean up contamination from scattered mold spores.

Maintain 4 air changes per hour.

Utilize dehumidifiers to maintain humidity between 30-50% Rh.

Seal HVAC supply vents and/or return air vents in remediation area(s)

Signs advising that a mold remediation project is in progress shall be displayed at all accessible entrances to remediation areas. The signs shall be at least eight 8 inches by ten 10 inches in size and shall bear the words "NOTICE: Mold Remediation Project In Progress" in black on a yellow background. The text of the signs must be legible from a distance of ten 10 feet.

Section 3.2 Personal Protective Equipment (PPE)

Minimum PPE

FULL PPE REQUIRED

Gloves

Disposable Full Body Clothing

Head Gear

Foot Coverings

Full-Face Respirator with HEPA Filter

The remediation contractor shall insure that OSHA appropriate personal protective equipment (PPE) is worn while remediating all containment areas.

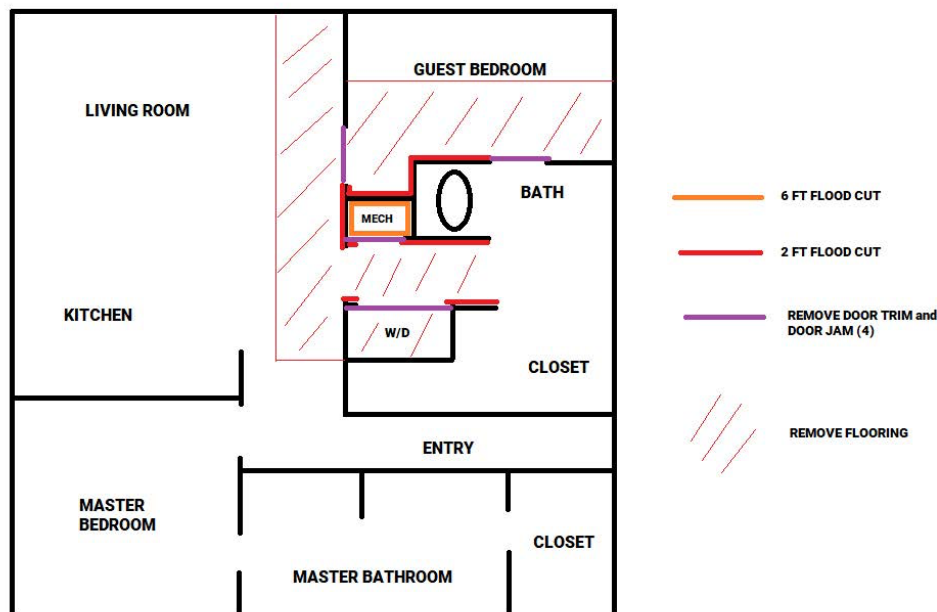
Use professional judgment, consider potential for remediator exposure and size of contaminated area. Contractor assumes all responsibility for PPE compliance.

The EPA Guidelines for Remediation of Building Materials with Mold Growth by Clean Water requirements for PPE should be followed. The complete table is included at the end of this document in U.S. EPA Cleaning Methods, Table 2.

Note: Professional judgment should always play a part in PPE decisions. The EPA guidelines are based on the total surface area contaminated and the potential for remediator and/or occupant exposure, not on the basis of health effects or research showing there is a specific method appropriate at a certain number of square feet. The guidelines have been designed to help construct a remediation plan. The remediation contractor will then use professional judgment and experience to adapt the guidelines to particular situations.

Section 4.0 Specific Remediation Requirements

Section 4.1 Project Diagram



- Follow all Containment Procedures in **Section 3.1**
- Remove door trim and door jams on 4 doors as indicated in PURPLE (W/D, Mechanical, Guest Bedroom, Guest Bathroom)
- Detach HVAC unit and remove platform
- 6 FT flood cut inside mechanical closet as indicated in ORANGE - approx 60 sq ft
- Cut out approx 9 sq ft CEILING in Mechanical Closet
- Remove 16 LF baseboard and 2 ft flood cut walls indicated in RED - approx 68 sq ft
- Remove 6 x 3 laminate flooring and underlayment in hallway
- Remove 3 x 6 laminate flooring and underlayment in W/D area
- Remove approx 11 x 4 section of laminate flooring in living room as indicated
- Remove approx 12 x 4 section of carpet in guest bedroom as indicated
- Follow all Cleaning Procedures in **Section 4.2** on next page

Section 4.0 Specific Remediation Requirements

4.2 Cleaning Procedures

- Follow all Containment Procedures in **Section 3.1**
- **CONTENTS:** Pack-out and clean contents according to **Table 2: EPA Cleanup Methods** at the end of this document. (HEPA vacuum/damp-wipe/steam clean) All washable soft contents (clothing, bedding, etc) should be washed according to manufacturer's instructions.
- **Cleaning Procedures For Demolition:**
 - Remove all insulation and other porous materials in wall cavities and thoroughly HEPA vacuum all dust and debris
 - Clean framing with HEPA vacuum and a grease cutting soap solution or an EPA approved mold cleaning product used according to the manufacturer's instructions. For wood framing, use a sander to remove the top layer of discoloration from the wood and HEPA vacuum all dust.
 - **DO NOT ENCAPSULATE FRAMING WITHOUT APPROVAL FROM THE MAC** -If any framing is not able to be adequately cleaned/sanded to remove mold growth or staining, please text post-cleaning pictures to 972-945-6653.
 - Inspect wall cavities for signs of contamination, hidden water damage and/or mold growth. Semi-porous building materials (framing, studs, joists, sub-floors, etc.) which cannot be adequately cleaned of fungal growth or containing rotten wood should be removed and disposed. If the integrity of any support structure is questionable, it should be replaced. Any materials removed should extend at least 24" past the last signs of water damage or visible mold growth.
 - Dry all wet materials. Wood moisture content should not exceed 15% after cleaning is performed. Air movers and dehumidification equipment should be utilized to dry the structure as needed.
 - HEPA vacuum and damp-wipe all surfaces in the contained area until there is no visible dust or debris
 - Dispose of all mold containing materials in double 6 mil poly and wipe the outside
- **HVAC:** Have a licensed HVAC professional clean the inside of the HVAC unit - coils, blower fans, plenums, etc. Visually inspect supply plenum for visible microbial growth and replace if necessary. Clean HVAC ducting under negative pressure with HEPA filtration. Change all filters and clean registers.
- **ENVIRONMENTAL CLEANING THROUGHOUT ENTIRE UNIT FOLLOWING DEMOLITION:** HEPA vacuum all surfaces. Damp-wipe all horizontal and dust collecting surfaces using a mild detergent solution. HEPA vacuum carpets multiple times in a criss-cross pattern followed by steam cleaning. Dry carpets thoroughly. Place an air scrubber in each bedroom and in the living room/kitchen area.
- *Air wash with fans and allow air scrubbers to run for 48 hours prior to clearance testing*

**The use of EPA registered disinfectants, biocides and antimicrobial coatings may be used; however, if the remediation contractor wishes to use an antimicrobial encapsulant prior to post remediation assessment, the assessment consultant must be contacted for discussion and approval of application areas prior to proceeding. Mold assessment consultant will require visual and/or photo confirmation from the remediation contractor regarding the area(s) in question prior to encapsulation being applied.*

NOTE: The steps outlined here are the minimum steps required for remediation. A remediation contractor may take additional or varied steps as dictated by their judgment and/or operating procedures to adequately abate the mold contamination. However, should significant variance from the above recommendations be required or other issues regarding remediation arise, the remediation contractor should first obtain concurrence from the Mold Assessment Consultant.

Section 5.0

Post Remediation Assessment and Clearance Criteria

Once the remediation has been completed, for the contaminated area(s) to achieve Clearance, a Post Remediation Inspection must be performed along with the collection and analysis of an appropriate number of samples.

Dallas Mold Consultants must be provided with a copy of the Remediation Contractor's Work Plan for the Mold Assessment Consultant to determine whether the remediation has been completed in accordance with this protocol.

Prior to obtaining final clearance the owner/agent must have repaired the underlying cause of the mold, so that it is reasonably certain that the mold will not return from the same cause.

The Mold Assessment Consultant shall perform a visual, procedural, and analytical evaluations in the impacted area(s) to determine whether the remediation has been performed according to the Remediation Protocol provided for this project.

5.1 Visual Inspection

A thorough visual inspection of the containment area(s) or remediation areas will be performed. All areas should be left dry and visibly free of all visible microbial contamination and debris.

Under no circumstances should any encapsulant and primers be applied to any surfaces prior to the Post-Remediation, Inspection and Clearance Testing unless approved by the Mold Assessment Consultant.

Containments must remain in place until Clearance Lab Results.

5.2 Sampling

The sample analysis must reveal no mold growth on any surface sampled and airborne mold counts must be statistically similar to outdoor air for corresponding mold types and total indoor air mold spore concentrations must be generally lower than outdoor mold spore concentrations. IICRC S520 Clearance Standards apply.

1. One air sample from inside each containment or work area where mold was previously detected (one per area).
2. One indoor control air sample from inside the property outside of the containment(s) or work area(s).
3. One to two surface sample(s) per affected area where mold growth was previously observed.
4. At least one outdoor air sample required as a baseline for the Lab.

5.3 Clearance Criteria

The Clearance Investigation and Testing is conducted when mold remediation and cleanup efforts are completed but before containment is removed and renovation activities have begun.

The purpose of the clearance investigation is to ensure that remediation activities have been completed as outlined in the Remediation Protocol, containment has been maintained, all dust and debris have been removed from the containment areas, and no malodors or visible mold is present.

Clearance testing consists of a visual assessment for mold problems in area(s) of remediation activities and the collection/analysis of a tape lift sample and an air quality test in these designated area(s). Clearance is defined as tape and air samples collected indoors being quantitatively equal to or less than outdoor samples, and qualitatively similar. There are no exposure limits for the swab or tape lift sample.

As a general rule acceptable clearance of a containment area is reached when the genus of fungi collected from indoor air are equal to or less than outdoor air. Marker spores such as Chaetomium or Stachybotrys that are measured at more than 2 spores in the air test will result in the area not being cleared. Total average spore counts in the containment area should not exceed 2,000, and a single spore category should not exceed 1,000. In addition, the rank order and type of organism identified may indicate interior contamination and related need for additional action.

If the containment area has dust, debris, breached containment, lack of quality control related to remediation specifications the inspector will not conduct further clearance activities. The client will be informed of observed project deficit concerns for communication with the Mold Remediation Contractor. In addition, if visible mold is present, a tape lift and swab sample is collected for lab analysis.

NOTICE to CLIENT:

Part of the clearance process is ensuring that the source of the problem has been addressed to ensure the problem doesn't reoccur. As the homeowner, you agree to address all sources of water intrusion. Once the restoration/remediation efforts have commenced, you agree and understand that it is NOT SAFE for you to re-enter the contained space until a clearance has been achieved. By doing so you may breach the containment, cross-contaminate the other parts of your home and delay the process. If clearance is not achieved on the first attempt, the contractor will be required to re-clean and let the air scrubbers run for an additional time. After the first clearance test, subsequent clearance inspection costs will be at the restoration contractor's expense, UNLESS it is found that the client has entered and breached the containment area during clearance efforts.

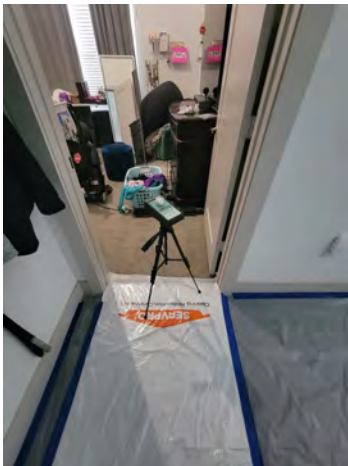
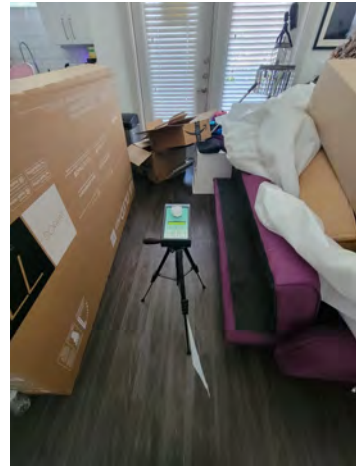
By engaging this project, the contractor also agrees to these terms.

Client's Initials: _____

Section 6.0

6.1 Photographic Documentation

Air Samples - Temperature - Humidity Readings



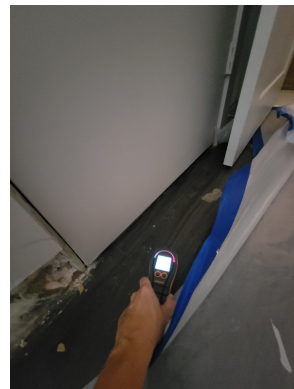
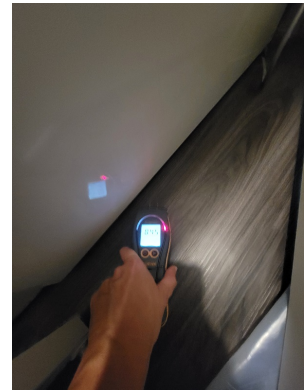
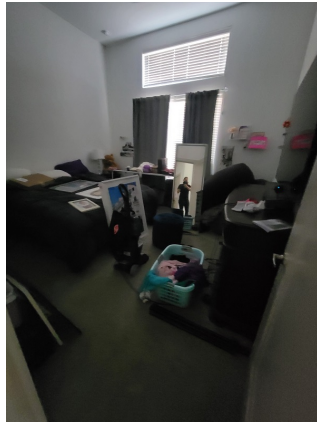
**Guest Bedroom Drywall
Tape Lift Sample**



**Utility Hallway Drywall Tape
Lift Sample**

6.1 Photographic Documentation (Continued)





Section 7.0 Credentials

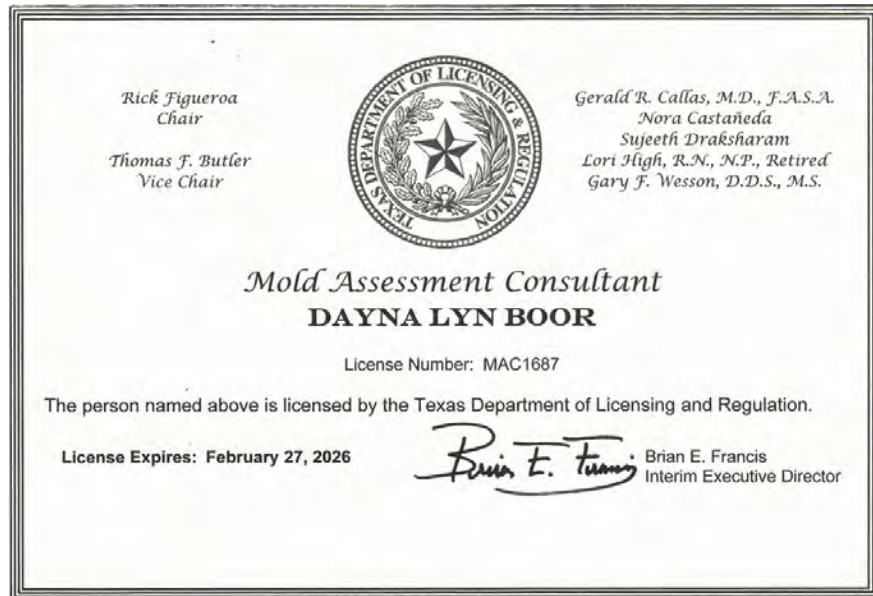


Table 2: Guidelines for Remediating Building Materials with Mold Growth Caused by Clean Water*

Material or Furnishing Affected	Cleanup Methods [†]	Personal Protective Equipment	Containment
SMALL – Total Surface Area Affected Less Than 10 square feet (ft²)			
Books and papers	3	Minimum N-95 respirator, gloves, and goggles	None required
Carpet and backing	1, 3		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3		
Wallboard (Drywall and gypsum board)	3		
Wood surfaces	1, 2, 3		
MEDIUM – Total Surface Area Affected Between 10 and 100 (ft²)			
Books and papers	3	Limited or Full Use professional judgment, consider potential for remediator exposure and size of contaminated area	Limited Use professional judgment, consider potential for remediator/occupant exposure and size of contaminated area
Carpet and backing	1, 3, 4		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3, 4		
Wallboard (Drywall and gypsum board)	3, 4		
Wood surfaces	1, 2, 3		
LARGE – Total Surface Area Affected Greater Than 100 (ft²) or Potential for Increased Occupant or Remediator Exposure During Remediation Estimated to be Significant			
Books and papers	3		Full Use professional judgment, consider potential for remediator/occupant exposure and size of contaminated area
Carpet and backing	1, 3, 4		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3, 4		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3, 4		
Wallboard (Drywall and gypsum board)	3, 4		
Wood surfaces	1, 2, 3, 4		

EPA Cleanup Methods

Use professional judgment to determine prudent levels of Personal Protective Equipment and containment for each situation, particularly as the remediation site size increases and the potential for exposure and health effects arises. Assess the need for increased Personal Protective Equipment, if, during the remediation more extensive contamination is encountered than was expected. These guidelines are for damage caused by clean water. If you know or suspect that the water source is contaminated with sewage, or chemical or biological pollutants, then the Occupational Safety and Health Administration (OSHA) requires PPE and containment. An experienced professional should be consulted if you and/or your remediator do not have expertise in remediating contaminated water situations. Select method most appropriate to situation. Since molds gradually destroy the things they grow on, if mold growth is not addressed promptly, some items may be damaged such that cleaning will not restore their original appearance. If mold growth is heavy and items are valuable or important, you may wish to consult a restoration/water damage/remediation expert. Please note that these are guidelines; other cleaning methods may be preferred by some professionals.

Cleanup Methods

Method 1: Wet vacuum (in the case of porous materials, some mold spores/fragments will remain in the material but will not grow if the materials is completely dried). Steam cleaning may be an alternative for carpets and some upholstered furniture.

Method 2: Damp-wipe surfaces with plain water or with water and detergent solution (except wood-use wood floor cleaner); scrub as needed.

Method 3: High-efficiency particulate air (HEPA) vacuum after the material has been thoroughly dried. Dispose of the contents of the HEPA vacuum in well-sealed plastic bags.

Method 4: Discard - remove water-damaged materials and seal in plastic bags while inside of containment, if present. Dispose of as normal waste. HEPA vacuum area after it is dried.

Personal Protective Equipment (PPE)

Minimum: Gloves, N-95 respirator, goggle/eye protection

Limited: Gloves, N-95 respirator or half-face respirator with HEPA filter, disposable overalls, goggles/eye protection

Full: Gloves, disposable full body clothing, head gear, foot coverings, full-face respirator with HEPA filter

Containment

Limited: Use polyethylene sheeting ceiling to floor around affected area with a slit entry and covering flap; maintain area under negative pressure with HEPA filtered fan unit. Block supply and return air vents within containment area.

Full: Use two layers of fire-retardant polyethylene sheeting with one airlock chamber. Maintain area under negative pressure with HEPA filtered fan exhausted outside of building. Block supply and return air vents within containment area.

CONSUMER MOLD INFORMATION SHEET



State rules require licensed mold assessors and remediators to give a copy of this Consumer Mold Information Sheet to each client and to the property owner, if not the same person, before starting any mold-related activity [16 TAC 78.70].

How does Texas regulate businesses that do testing for mold or that do mold cleanup?

The Department of Licensing and Regulation (TDLR) regulates such businesses in accordance with the [Texas Occupations Code, Chapter 1958](#). Under the **Texas Mold Assessment and Remediation Rules (rules)** ([16 Tex. Admin. Code, Chapter 78](#)), all companies and individuals who perform mold-related activities in Texas must be licensed by TDLR unless exempt. (See Page 2 regarding owner exemptions.) Individuals must meet certain qualifications, have required training, and pass a state exam and criminal history background check in order to be issued a license. Applicants for a mold remediation worker registration must have training and pass a criminal history background in order to be registered by TDLR. Laboratories that analyze mold samples must also be licensed and meet certain qualifications. The rules set minimum work practices and procedures and also require licensees to follow a code of ethics. To prevent conflicts of interest, the rules also prohibit a licensee from conducting both mold assessment and mold remediation on the same project. While the rules regulate the activities of mold licensees when they are doing mold-related activities, the rules do not require any property owner or occupant to clean up mold or to have it cleaned up.

How can I know if someone is licensed?

A licensed individual is required to carry a current TDLR license certificate with the license number on it. A search tool and listings of currently licensed companies and individuals can be found at: <https://www.tdlr.texas.gov/LicenseSearch/>.

What is “mold assessment?”

Mold assessment is an inspection of a building by a **mold assessment consultant** or **technician** to evaluate whether mold growth is present and to what extent. Samples may be taken to determine the amount and types of mold that are present; however, sampling is not necessary in many cases. When

mold cleanup is necessary a licensed mold assessment consultant can provide you with a **mold remediation protocol**. A protocol must specify the estimated quantities and locations of materials to be remediated, methods to be used and clearance criteria that must be met.

What is meant by “clearance criteria?”

Clearance criteria refer to the level of “cleanliness” that must be achieved by the persons conducting the mold cleanup. It is important to understand and agree with the mold assessment consultant prior to starting the project as to what an acceptable clearance level will be, including what will be acceptable results for any air sampling or surface sampling for mold. There are no national or state standards for a “safe” level of mold. Mold spores are a natural part of the environment and are always present at some level in the air and on surfaces all around us.

What is “mold remediation?”

Mold remediation is the cleanup and removal of mold growth from surfaces and/or contents in a building. It also refers to actions taken to prevent mold from growing back. Licensed **mold remediation contractors** must follow a mold remediation protocol as described above and their own **mold remediation work plan** that provides specific instructions and/or standard operating procedures for how the project will be done.

Before a remediation project can be deemed successful, a mold assessment consultant must conduct a **post-remediation assessment**. This is an inspection to ensure that the work area is free from all visible mold and wood rot, the project was completed in compliance with the remediation protocol and remediation work plan, and that it meets all clearance criteria that were specified in the protocol. The assessment consultant must give you a **passed clearance report** documenting the results of this inspection. If the project fails clearance,

What is a Certificate of Mold Damage Remediation?

No later than the 10th day after a mold remediation project stop date, the remediation contractor must sign and give you a **Certificate of Mold Damage Remediation**. The licensed mold assessment consultant who conducted the post-remediation assessment must also sign the certificate. The consultant must truthfully state on the certificate that the mold contamination identified for the project has been remediated and whether the underlying cause of the mold has been corrected. (That work may involve other types of professional services that are not regulated by the mold rules, such as plumbing or carpentry.) Receiving a certificate documenting that the underlying cause of the mold was remediated is an advantage for a homeowner. It prevents an insurer from making an underwriting decision on the residential property based on previous mold damage or previous claims for mold damage. If you sell your property, the law requires that you provide the buyer a copy of all certificates you have received for that property within the preceding five years.

How is a property owner protected if a mold assessor or remediator does a poor job or damages the property?

The rules require licensees to have commercial general liability insurance in the amount of at least \$1 million, or to be self-insured, to cover any damage to your property. Before hiring anyone, you should ask for proof of such insurance coverage. You may wish to inquire if the company carries additional insurance, such as professional liability/errors and omissions (for consultants) or pollution insurance (for contractors), that would provide additional recourse to you should the company fail to perform properly.

How is my confidentiality protected if I share personal information about myself with a company?

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How do I file a complaint about a company?

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Yes. A homeowner can take samples for mold or clean it up in the home without a license. An owner, or a managing agent or employee of an owner of a residential property is not required to be licensed, **unless** the property has 10 or more residential dwelling units. For non-residential properties, an owner or tenant, or a managing agent or employee of an owner or tenant, is not required to be licensed to do mold assessment or remediation on property owned or leased by the owner or tenant, **unless** the mold contamination affects a total surface area of 25 contiguous square feet or more. Please refer to 16 TAC §78.30 for further details on exceptions and exemptions to licensing requirements.

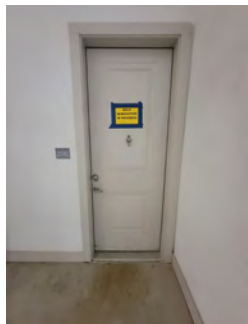
For more information about mold and the Texas Mold Assessment and Remediation Rules, contact:

***Texas Department of Licensing and Regulation
Mold Assessors and Remediators
P.O. Box 12057, Austin, TX 78711
Phone: 512-463-6599 or 800-803-9202
www.tdlr.texas.gov***

Re-inspection Report

Project No: Weinstein-090425

Inspection Date: 10/17/2025



**220 E Broadway Ave #2145
Ft. Worth, TX 76104**

Prepared By:

Dallas Mold Consultants
8080 N Central Expressway, Suite 1700
Dallas, TX 75206
972-945-MOLD (6653)
office@dallasmoldconsultants.com

Prepared For:

Weinstein Properties
Pamela Quinn
804.283.4708
pquinn@weinsteinproperties.com

NOTES: Mold testing was requested on an additional area of suspicion by the front door. The paint in the area does have an odd appearance and there is a dark substance that is suspected to be mold.

The drywall does not have elevated moisture readings.

A swab sample was collected from the area which revealed normal fungal ecology. To further rule out water damage and mold growth inside the wall cavity, exploratory measures such as removal of baseboard/door trim and removal of the drywall could be taken.

See pictures and lab snapshot on next page.

Full lab report sent as a separate attachment.

Written By:

A handwritten signature in dark ink, appearing to read "Dayna Boor".

Dayna Boor

Licensed Mold Assessment Consultant - TDLR # MAC1687, Exp. 02/27/2026

Licensed Mold Remediation Contractor - TDLR # MRC1602, Exp. 04/02/2027

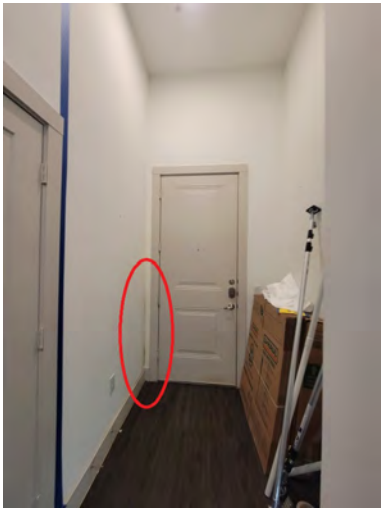
Lab Results

Sample No:	101725-01	Analysis Date:	10/18/2025	Sample Type:	Swab
Location:	Entry Drywall				
Identification		Rating			
Alternaria			Minor		
Ascospores, non-specified			Minor		
Bipolaris/Dreschslera/Helminthosporium/Exserohilum			Minor		
Curvularia			Minor		
Myxomycetes/Periconia/Smut/Rust			Minor		
Nigrospora			Minor		
Non-specified spore			Minor		
Pithomyces			Minor		
Hyphal Fragments			Minor		

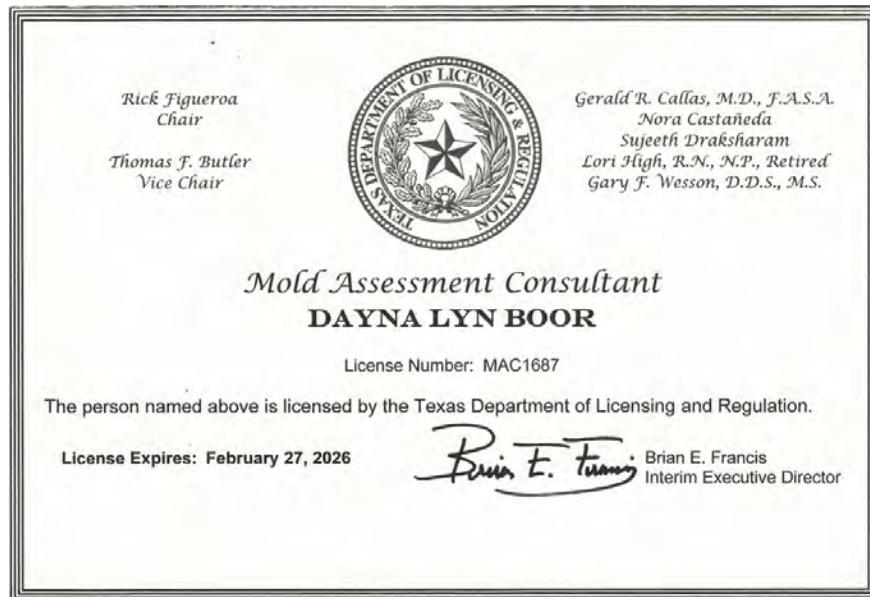


A surface swab sample collected from this area identified minor concentrations of Alternaria, Ascospores, Bipolaris, Curvularia, Myxomycetes, Nigrospora, and Pithomyces.

These minor concentrations are not indicative of mold growth on the drywall but rather normal fungal ecology on a surface.



Credentials





CONSUMER MOLD INFORMATION SHEET



State rules require licensed mold assessors and remediators to give a copy of this Consumer Mold Information Sheet to each client and to the property owner, if not the same person, before starting any mold-related activity [16 TAC 78.70].

How does Texas regulate businesses that do testing for mold or that do mold cleanup?

The Department of Licensing and Regulation (TDLR) regulates such businesses in accordance with the [Texas Occupations Code, Chapter 1958](#). Under the [Texas Mold Assessment and Remediation Rules \(rules\) \(16 Tex. Admin. Code, Chapter 78\)](#), all companies and individuals who perform mold-related activities in Texas must be licensed by TDLR unless exempt. (See Page 2 regarding owner exemptions.) Individuals must meet certain qualifications, have required training, and pass a state exam and criminal history background check in order to be issued a license. Applicants for a mold remediation worker registration must have training and pass a criminal history background in order to be registered by TDLR. Laboratories that analyze mold samples must also be licensed and meet certain qualifications. The rules set minimum work practices and procedures and also require licensees to follow a code of ethics. To prevent conflicts of interest, the rules also prohibit a licensee from conducting both mold assessment and mold remediation on the same project. While the rules regulate the activities of mold licensees when they are doing mold-related activities, the rules do not require any property owner or occupant to clean up mold or to have it cleaned up.

How can I know if someone is licensed?

A licensed individual is required to carry a current TDLR license certificate with the license number on it. A search tool and listings of currently licensed companies and individuals can be found at: <https://www.tdlr.texas.gov/LicenseSearch/>.

What is "mold assessment?"

Mold assessment is an inspection of a building by a mold assessment consultant or technician to evaluate whether mold growth is present and to what extent. Samples may be taken to determine the amount and types of mold that are present, however, sampling is not necessary in many cases. When

mold cleanup is necessary a licensed mold assessment consultant can provide you with a **mold remediation protocol**. A protocol must specify the estimated quantities and locations of materials to be remediated, methods to be used and clearance criteria that must be met.

What is meant by "clearance criteria?"

Clearance criteria refer to the level of "cleanliness" that must be achieved by the persons conducting the mold cleanup. It is important to understand and agree with the mold assessment consultant prior to starting the project as to what an acceptable clearance level will be, including what will be acceptable results for any air sampling or surface sampling for mold. There are no national or state standards for a "safe" level of mold. Mold spores are a natural part of the environment and are always present at some level in the air and on surfaces all around us.

What is "mold remediation?"

Mold remediation is the cleanup and removal of mold growth from surfaces and/or contents in a building. It also refers to actions taken to prevent mold from growing back. Licensed mold remediation contractors must follow a mold remediation protocol as described above and their own **mold remediation work plan** that provides specific instructions and/or standard operating procedures for how the project will be done.

Before a remediation project can be deemed successful, a mold assessment consultant must conduct a **post-remediation assessment**. This is an inspection to ensure that the work area is free from all visible mold and wood rot, the project was completed in compliance with the remediation protocol and remediation work plan, and that it meets all clearance criteria that were specified in the protocol. The assessment consultant must give you a **passed clearance report** documenting the results of this inspection. If the project fails clearance,

further remediation as prescribed by a consultant will be necessary.

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PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24 Filed 05/18/26 Page 101 of 105
Direct Exam Chain of Custody

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

DALLAS MOLD CONSULTANTS
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Company name		Dallas Mold Consultants				moldlab					
Address		8080 N. Central Expy Ste 1700		City	Dallas	State	TX	ZIP	75206	FM-17 External 10 Line Chain of Custody Form	
Project name		Weinstein- 090425				Submitted By:		Dayna Boor			
Project address		220 E Broadway Ave #2145, Ft. Worth TX				ZIP	76104	Cell phone		214-606-1330	
Project#(optional)		Turnaround Time				Email address:		dayna@dallasmoldconsultants.com			
Sample Date		09/04/2025		3HR	6HR	24HR	48HR	3DAY	5DAY	CC:	
				☐	☐	☒	☐	☐	☐	CC:	
Test Codes		MOLD				ASBESTOS					
		Air Samples				Surface Samples					
		1. Spore Trap: mold only 2. Spore Trap: mold & other particle				3. Tape/Swab/Bulk: mold only ratings 4. Tape/Swab/Bulk: mold & other particle ratings				7. PLM 8. PLM Point Count	
Sample # or ID	Sample Name, Location or Description	Temp	R.H. %	Test code	Time on (applicable to air samples only)	Time off (applicable to air samples only)	Total Vol. (applicable to air samples only)	Sample Type (Bulk, Tape, Swab, Allergenco, etc.)	No. of Containers		
1. 090425-01	Guest Bedroom Tape Lift	76	63	3				tape	1		
2. 090425-02	HVAC Closet Drivall Tape Lift	76	63	3				tape	1		
3. 00010444	HVAC Closet Hallway	76	63	1	11:39am	11:44am	75L	an	1		
4. 00010785	Guest Bedroom	76	63	1	11:45am	11:50am	75L	an	1		
5. 00010449	Living Room	76	63	1	11:52am	11:57am	75L	an	1		
6. 00010704	Master Bedroom	76	63	1	11:58am	12:03pm	75L	an	1		
7. 00010650	Outside Baseline	92	43	1	12:05pm	12:10pm	75L	an	1		
8.											
9.											
10.											
Payment options		☐ Invoice to account ☒ Process credit card on file ☐ enclosed check#		Released by (your signature)		By signing this document, you certify that these samples were not tampered with while under your care and accept the Moldlab, Ltd Terms of Service, available at moldlab.com/terms.		Time: 1:15pm Date: 09/04/2025		Received Date Stamp: RECEIVED SEP 04 2025 BY: [Signature]	
Field Notes:											
Special Instructions:											
Tracking #:											
Lab Job #		25-111919 25-111920									
Rev. 7, Issue Date: 3/24/2022		2501 Mayes Road, Ste. # 110 Carrollton, TX 75006 info@moldlab.com 1-800-416-6653									

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 9/4/2025 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

Page 1 | 1

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:

Kristina Rucker, Lab Director



moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

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Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Case 4:26-cv-00585-O-BP

Document 24

Filed 05/13/26

Page 102 of 105



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

Report

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Sample No: 090425-01 **Analysis Date:** 9/5/2025 **Sample Type:** Tape /Bio-tape
Location: Guest Bedroom Tape Lift

Identification

Rating

Aspergillus/Penicillium-like

Minor

Chaetomium

Heavy

Cladosporium

Minor

Hyphal Fragments

Heavy

Sample No: 090425-02 **Analysis Date:** 9/5/2025 **Sample Type:** Tape /Bio-tape
Location: HVAC Closet Drywall Tape Lift

Identification

Rating

Chaetomium

Heavy

Hyphal Fragments

Heavy

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

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moldlab

2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com



Direct Exam FAQ

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

This test report contains the following sections: Cover, Report, FAQ, and Glossary

What does the rating system mean?

Mold is a normal part of our environment, and mold spores can settle out of the air into accumulated dust. This can cause 'minor' ratings of several different types of mold to appear even in a typical house dust sample, and these may not necessarily be a cause for concern. However, a 'heavy' rating may indicate that the sample was taken from a source of mold. Below are the exact criteria for each rating:

- 'No mold detected' means that the sample submitted did **not** contain a detectable level of mold.
- 'Minor' means that the technician observed 1 or fewer structures of mold per field of view under the microscope.
- 'Moderate' means 1 to 3 structures of mold were detected per field of view.
- 'Heavy' means greater than 3 structures were detected per field of view.

Always take into consideration the sample as a whole when interpreting results. It is important to also consider the types of mold detected and the location the sample was taken.

How do I learn more about the types of mold listed on my report?

Each report comes with its own mold dictionary, called the Glossary. Simply scroll to the Glossary section of your report and each mold type is listed alphabetically. There you'll find helpful information about each mold type.

Do I have the Black Mold?

Usually when a customer asks this question he/she is referring to Stachybotrys. Although Stachybotrys is black in color, so are many other types of mold. Do not discount the importance of other types of mold listed on your report simply because you do not see the word Stachybotrys or Black mold. For more about 'black mold', visit our website at: <https://www.moldlab.com/black-mold>

How do I get rid of it?

Many molds are allergens and some may be toxigenic. Disturbing the mold with cleaning methods increases the chances of exposure to the particulate. Mold clean up and disposal methods vary greatly from company to company. A good rule of thumb is that if the contaminated area is small and the material is non porous, such as metal, it can be cleaned by traditional methods, taking care to use personal protective equipment. Porous materials on the other hand, such as wood, textiles, or sheetrock, are difficult to clean because of the microscopic holes in the material. The 'root-like' structures of the mold called hyphae/mycelia can grow down into the holes and make it hard to clean effectively. The surface will appear clean but as soon as conditions are favorable the mold can start to grow again. Here is a link to the EPA mold help guide: <https://www.epa.gov/mold/brief-guide-mold-moisture-and-your-home>

Can we still live here?

There are no established 'safe' levels of mold, just as there are no established 'unsafe' levels of mold, and individuals have different resistances and reactions to mold. Persons that are most likely to be adversely affected by mold exposure are: children, elderly, immunocompromised, and persons with respiratory disorders. If you suspect you are experiencing adverse health effects as a result of mold, please consult a medical professional. Please note that Moldlab, Ltd. is not a medical, or clinical laboratory and we do not offer medical consulting or advice.

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

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moldlab

2501 Mayes Rd #110
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Direct Exam Glossary

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

This test report contains the following sections: Cover, Report, FAQ, and Glossary

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus. The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

- Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.
- Contaminant- something that is present without injuring or benefiting the host; does not cause infection.
- Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition

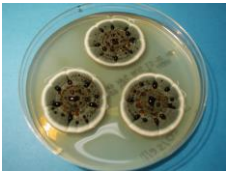
Images

Aspergillus/Penicillium-like (as-per-jill-us) / (pen-uh-sill'ee-um)
Classification: Allergen / Contaminant / Opportunistic Pathogen

Possible Health Effect: Aspergillus is common on tape lift samples and air samples, but its spores are indistinguishable from Penicillium spores in most cases. There are a few exceptions but the species ID must be made from culture, and is still a difficult job. Health effects vary by species, but many are listed as allergens. Some species can produce toxins that may have significant health effects in humans. Aspergillus is listed as one of the most infectious types of mold, but infections are not common in normal healthy immune systems. However, if you are immune suppressed or compromised this should be discussed with your physician.

Macroscopic Morphology: Aspergillus can appear in a wide range of colors from white to purple, yellow to green, see images next to text.

Environment: Commonly found in the environment around the world.



Tech Notes:

Definition

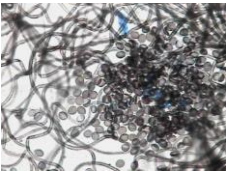
Images

Chaetomium (kay- toe-me-um)
Classification: Contaminant / some report allergen

Possible Health Effect: Rarely involved in systemic and cutaneous disease and sometimes reported to be allergenic. Some species can produce toxins, and there is some research interest on whether these toxins can cause cancer.

Macroscopic Morphology: The surface of the mold is cottony, spreading and becomes tan or gray with age. With close examination the surface sometimes will appear to have little black specks like pepper.

Environment: Chaetomium is one of the few Ascomycetes that will grow and produce spores indoors. It prefers to grow on cellulose for example paper and wood. Primary IAQ importance is that it will grow in the same conditions as Stachybotrys (wet cellulose) and sheetrock paper. Colonies of Chaetomium and Stachybotrys will be growing on top of one another. Also, found in soil and hay.

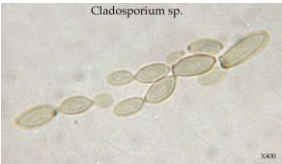


Cladosporium (clad-oh-spore-ee-um)
Classification: Common Allergen/ Contaminant

Possible Health Effect: Rarely pathogenic, it is a common agent of hay fever and asthma and other allergy related symptoms.

Macroscopic Morphology: Surface of the mold is greenish brown or can appear black in color with age and have heap or folded appearance.

Environment: Cladosporium can be found in most air samples most of the time. It is very common. Cladosporium is one of the types of mold found growing on HVAC vent covers and grills. It can grow on leaves, textiles, wood, paper, and decaying vegetation.



Hyphal Fragments (hy-full)
Classification: N/A

Possible Health Effect: N/A

Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone.

Environment: N/A



Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

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